

## OVERALL ATTACK OUTLINE

| JURISDICTION                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                              |
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| Art. III/Constitutional Jurisdiction:                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                              |
| <a href="#">STANDING</a><br><a href="#">Regular Standing</a><br><a href="#">Legislative Standing</a><br><a href="#">State Standing</a><br><a href="#">Taxpayer Standing</a><br><a href="#">Third Party Standing</a> | <p>Things to think about: manufacturing standing, actual injury v. statutory violation, TPS: is the litigant before the court asserting the rights of someone else? (TPS technically prudential, not matter of Art III; remember still need independent Art III standing for TPS)</p>                                                                                                        |
| <a href="#">RIPENESS</a>                                                                                                                                                                                            | Ripeness = imminent injury requirement (Lujan)                                                                                                                                                                                                                                                                                                                                               |
| <a href="#">MOOTNESS</a>                                                                                                                                                                                            | <p>Will/has something happen(ed) after litigation has started/as time goes on that may moot out the case? (if the plaintiff is no longer suffering an injury redressable by the court, the case will be dismissed as moot) (note if it happened before case has started, won't be mootness issue)</p>                                                                                        |
| <a href="#">POD</a>                                                                                                                                                                                                 | <p>Congressional proceedings:<br/>                     Something like Powell v. McCormack: can congress kick out one of its members?</p> <p>Election-related disputes:<br/>                     like Rucho</p> <p>Foreign Affairs:<br/>                     like Zivotofsky or Goldwater</p> <p><b>**outcome really depends on how you define the issue that the court has to decide</b></p> |
| <a href="#">IND. AND AD. STATE LAW GROUND</a>                                                                                                                                                                       | Seeking SCOTUS appellate review of state court decision with BOTH federal and state law claims                                                                                                                                                                                                                                                                                               |
| Statutory Jurisdiction:                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                              |
| <a href="#">JURISDICTION-STRIPPING</a>                                                                                                                                                                              | <p>Has Congress passed a statute that tries to repeal SCOTUS or other court's jx?<br/> <i>If so, is it constitutional?</i><br/> <b>(could come up in habeas too! → does Suspension Clause apply? <a href="#">Boumediene</a>)</b></p>                                                                                                                                                         |
| <a href="#">Rooker-Feldman Doctrine</a>                                                                                                                                                                             | <p>Person bringing suit to challenge state court decision in federal district court? <i>Only SCOTUS can review final state court decision</i></p>                                                                                                                                                                                                                                            |

| CAUSE OF ACTION                                                                                                                     |                                                                                                                                                                                                                                                                                                                                  |
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| <i>Remember there could be a “gimmie” COA in the prompt! State law can also provide COA</i>                                         |                                                                                                                                                                                                                                                                                                                                  |
| <a href="#">SECTION 1983</a>                                                                                                        | either personal or official capacity suit against state and local officials, and localities (for damages or injunctive relief)<br><i>If 1983 + other federal statute → Gonzaga test</i><br><i>Possible conflict with habeas? (Preiser-Heck)</i>                                                                                  |
| <a href="#">BIVENS</a>                                                                                                              | Suit against federal official for damages only<br><i>If in personal capacity → official immunity?</i>                                                                                                                                                                                                                            |
| <a href="#">IMPLIED PRIV RIGHT OF ACTION</a>                                                                                        | Typically comes up when private party suing private party<br><i>Don't make the mistake of using implied private right of action when 1983 works!</i>                                                                                                                                                                             |
| <a href="#">HABEAS</a><br>(Jx, COA, and defenses all tend to get combined under habeas; just look whether habeas petition is valid) | Person in custody somehow (could be parole, etc) (prompt gives lots of new law?)<br>If there's new law decided after state conviction becomes final → could be Teague exception                                                                                                                                                  |
| <a href="#">Incorporating Customary Intl Law</a>                                                                                    | Claiming violation of international norms?                                                                                                                                                                                                                                                                                       |
| DEFENSES                                                                                                                            |                                                                                                                                                                                                                                                                                                                                  |
| <b>Abstention</b> ( <i>Court has jx but there are prudential reasons to abstain</i> )                                               |                                                                                                                                                                                                                                                                                                                                  |
| <a href="#">Pullman</a>                                                                                                             | Is there a federal constitutional claim and a state law claim in the same case?                                                                                                                                                                                                                                                  |
| <a href="#">Younger</a>                                                                                                             | fed court cannot enjoin a pending state criminal prosecution or civil enforcement action<br><br>**Even if the federal complaint is filed first, if no proceedings of substance on the merits have taken place in the federal case yet and the state brings an action in state court, then the federal court will abstain (Hicks) |
| <a href="#">Colorado River</a>                                                                                                      | Are there two cases pending, one in federal court and one in state court, about the same issue?                                                                                                                                                                                                                                  |
| Immunities/Other Defenses                                                                                                           |                                                                                                                                                                                                                                                                                                                                  |
| <a href="#">Sovereign Immunity</a>                                                                                                  | Suit against a state, federal govt, or federal/state official? (NOT localities)                                                                                                                                                                                                                                                  |

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| Get around sovereign immunity:<br><a href="#">abrogation</a>                                     | Evidence of what states have been doing?<br>Can argue that it is abrogated for entire statute or just for part of a statute (like TN v Lane)                                                                                                                     |
| Get around sovereign immunity:<br>Waiver, <a href="#">induced consent</a>                        | Waiver (easy) or induced consent thru spending power?                                                                                                                                                                                                            |
| Get around sovereign immunity: <a href="#">EXPY</a><br>(only injunctive or declaratory relief)   | EXPY: Suit against state official in official capacity for inj/dec relief.<br>Only for federal const/statutory violations.<br>Needs to be paired with COA.<br><i>Possible Edelman damages/injunction issue?</i>                                                  |
| <a href="#">Monell</a>                                                                           | Any suit against a locality or local official in their official capacity? (any kind of suit, not just 1983 claims, any relief sought)<br><i>Localities do not get sov or official immunity</i>                                                                   |
| <a href="#">Official Immunity</a>                                                                | Only for suits in personal capacity                                                                                                                                                                                                                              |
| <a href="#">Qualified Immunity</a>                                                               | - Only for suits in personal capacity<br>- ANY GOVT OFFICIAL who MUST exercise discretion could argue for QI (could include public school administrators, etc)<br>- Might be policing context, excessive force?<br>- (prompt might give case law not from class) |
| <a href="#">Govt contractor defense</a>                                                          | Is there a govt contractor being sued under state law?                                                                                                                                                                                                           |
| <a href="#">Presumption against extraterritoriality</a>                                          | Conduct happened outside of US?<br>Rule of statutory interpretation: statutes are presumed not to apply to conduct that occurred outside of the US (can rebut with sufficient tie to US conduct, but company doing business in US alone is not enough (Nestle))  |
| <a href="#">Non Article III court</a>                                                            | Would challenging the forum help?                                                                                                                                                                                                                                |
| <b>POLICY</b>                                                                                    |                                                                                                                                                                                                                                                                  |
| If time/space: think about adding policy arguments for each side, but focus should be on the law |                                                                                                                                                                                                                                                                  |

What is the statute trying to do?

- Create private rights/cause of action (Sec 1983 – Gonzaga)
- Jx strip
- Waive/abrogate immunity

## PART I: PROCEDURAL CONSTRAINTS

### A. Congressional Control over Federal Jurisdiction

#### Cong. Control of SCOTUS Appellate Jx:

- Congress has to confer SCOTUS's appellate jx through statutes
- **McCardle**: jx-stripping statute for SCT app jx:
  - **Plenary view**: Congress has plenary power over the appellate jx of the supreme court; can take it away (McCardle, Exceptions Clause)
    - Art III Exceptions Cl: SCT shall have appellate jx with such exceptions and under such regulations as the Congress shall make
  - Congress's **motive** is irrelevant (McCardle)
  - BUT can also use McCardle to argue that there **must be an avenue** to the SCT

#### Statutory Interpretation:

- Can read jx-stripping statute narrowly to try to limit it (**Hamdan** - didn't mention pending cases) (but jx-stripping statute in McCardle also didn't mention pending cases)

#### Cong. Control of Jx of LOWER Federal Courts:

- Congress creates the lower federal courts → can choose jurisdiction of lower federal courts (**Sheldon**) (but could argue this only applies to div jx cases)

#### Cong. Control of Federal Court Jx Generally:

- Statutory interpretation: **Webster v. Doe**
  - SCT said they had no jx over plaintiff's statutory claim
    - CIA statute: CIA has total discretion to fire Doe → nothing for SCT to review
  - BUT need **very clear statement** to eliminate review of constitutional claims
    - SCT has done gymnastics in stat interpretation to make sure they have jx over const claims
- Congress can change the law going forward (**Wheeling Bridge**)
  - Court declares bridge = nuisance, issues injunction; Congress passes law to say bridge is fine; Congress goes back on the injunction, says statute valid
- Congress cannot impose a rule of decision (**Klein - broad reading**), at least if rule is unconstitutional (**Klein - narrow reading**)
  - Klein: Congress tried to pass statute saying that presidential pardons of confederates were proof of their guilt re: supporting Confederacy, and if the person had accepted pardon, SCT lacked jx over the case
  - **Narrow reading**:
    - Congress's statute was unconstitutional bc infringing on Art II pardon power, and telling SCOTUS to support that.

- When SCOTUS has jx to decide a constitutional issue, Congress can't tell SCOTUS to decide in a way that results in an unconstitutional decision.
- **Means that Congress can tell SCOTUS how to decide, as long as not telling them how to decide in unconstitutional way**
- **Bank Markazi:**
  - Congress passed the law limiting foreign sov immunity so that Marines' families could get damages from Iran;
  - the statute named the pending case by name, said those plaintiffs get their money
  - Isn't Congress making a rule of decision here? No, SCT: they just changed the law
- **Patchak v. Zinke:**
  - Govt took piece of land neighboring Patchak's; Patchak sued
  - While case was pending, Congress passed Act saying Court had no Jx over any suit involving that specific piece of land
  - Court: Law is valid, Cong can take away the jx of SCT; reading McCardle broadly

#### Cong. Control over State Courts:

- Due Process Clause could be implicated if Congress tries to get rid of all review, including in state courts

#### Policy:

- Jx-stripping can be a mechanism for checking the SCT
- On the other hand, there is an assumption that the SCT has an essential role to decide constitutional issues; Constitutional claims are special

Arguments: Can Congress take away SCT appellate jx:

| No, it can't (so case can be heard) (plaintiff)                                                                                                | Yes it can (so case can't be heard) (D)                                                   |
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| There must still be an avenue to the SCT (McCardle)                                                                                            | Plenary power: Congress can strip SCT's appellate jx (Exceptions Clause) (McCardle)       |
|                                                                                                                                                | Congress's motive is irrelevant (McCardle)                                                |
| Statutory interp: does it apply to pending cases? If statute doesn't mention pending cases, maybe there is still jx for pending cases (Hamdan) | McCardle was pending too, but the Court still held that Congress could take away their jx |
| If constitutional issue: need very clear statement (Webster)                                                                                   |                                                                                           |

|                                                                                                                                                |                                                             |
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| Congress cannot impose a rule of decision (Klein - broad reading), at least if rule is unconstitutional (Klein - narrow reading; Bank Markazi) | Congress can change the law going forward (Wheeling Bridge) |
| Policy: SCT essential role; constitutional claim is special                                                                                    | Policy: need a (political) check on the SCT                 |

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Article III:

“...In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be a Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, **the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make**”

Congressional Control over Jurisdiction of Federal Courts:

- SCT’s original jx derives from the Constitution, but **the appellate jx derives from statutes; it has to be conferred by Congress**
- PLENARY POWER view = Congress has the power to make exceptions to SCOTUS’s jx over any category of cases; Congress has **plenary power** over the appellate jx of the supreme court (and lower federal courts)

Marbury v. Madison:

- Congress cannot expand SCOTUS’s original jx
- It is one thing for a court not to decide a case at all. It is quite another for the court to decide a case but be required to render a result inconsistent with the Constitution
- At a minimum, Marbury supports the proposition that the courts cannot decide cases inconsistently with the Constitution. Courts are not free to ignore the constitution in making decisions
- Applies to state courts too bc of **supremacy clause**: the supremacy clause instructs them to decide cases in accordance with the federal constitution

McCardle:

## Facts:

- 1867: Congress tried to expand SCT habeas review: expanded habeas writ to persons in state custody and specifically authorized appeals to SCOTUS in habeas cases
  - Motivated by Reconstruction: worried about formerly enslaved people and union soldiers incarcerated in the South
- McCardle arrested by U.S. Army officials

- Arrested under the Military Reconstruction Act of 1867, which established military jurisdiction over much of the South following the Civil War.
- McCardle was charged with disturbing the peace, inciting insurrection, libel, and impeding reconstruction for writing and publishing inflammatory editorials against Reconstruction.
- McCardle sought release by bringing habeas action; challenged the constitutionality of the Military Reconstruction Act of 1867 (thereby essentially challenging the constitutionality of Reconstruction)
- In response, Congress repealed SCT's appellate jx, i.e. its power to hear this case
  - Repealed the part of the 1867 statute granting SCT appellate jx to hear habeas petitions from people in state court custody
  - One representative stated that the purpose was to prevent SCT from hearing McCardle case
  - Congress didn't want SCT to be able to strike down the Military Reconstruction Act; didn't want SCT to make another political decision (Dred Scott had just happened a few years prior)
  - Congress: we established SCT appellate jx in the 1867 Act, and we may demolish it
  - This case had already been argued on the merits in SCOTUS when Congress passed this law

**Holding:**

- SCT allowed Congress to take away its appellate jurisdiction
- Court said Congress's motive is irrelevant
- **Exceptions Clause** gives Congress the power to take away SCT's jurisdiction
  - Art III: SCT shall have appellate jx with such exceptions and under such regulations as the Congress shall make
- Marbury: They have original jurisdiction over some cases and appellate over other - and appellate is subject to the Exceptions Clause

**Wrinkle:**

- On its face, the McCardle case seems to say Congress can do whatever it wants to SCT appellate jurisdiction
- But SCT said it still has ability to hear habeas cases for people detained by *federal* officials because of Judiciary Act of 1789
  - Judiciary Act of 1789: allowed courts to issue writs of habeas corpus for people detained by *fed* officials
  - SCT in 1807: decided it can review a habeas case heard by a lower federal court when the person is detained by the fed govt → can exercise appellate jx over it even though it's an original habeas petition
  - SCT in McCardle:

- It can still continue its practice of reviewing habeas petitions from people detained by federal officials
- The 1867 statute and its repeal had no effect on form of review allowed by the Judiciary Act of 1789
- McCardle was detained by federal officers → so McCardle and anyone else detained by federal officials can still be heard
- **Can use McCardle to argue for the plenary view or to argue that there must be an avenue to the SCT**

Hamdan:

- Guantanamo Bay prisoner
- Even though Congress tried to take away jx, SCT read statute narrowly and said it didn't apply to pending cases to avoid the jurisdiction-stripping
- Supports statutory interpretation arguments for arguing that Congress's attempt to take away SCT's appellate jurisdiction didn't work
- But McCardle case was pending, statute didn't explicitly mention pending cases, and Court held that it did take away SCT's appellate jx over that issue

Policy:

- Jx-stripping can be a mechanism for checking the SCT
- On the other hand, there is an assumption that the SCT has an essential role to decide constitutional issues
  - Constitutional claims are special

Congressional Control over Jurisdiction of **State Courts**:

- **Due Process Clause could be implicated if Congress tries to get rid of all review, including in state courts**
- Congress can modify the jx of state courts w/r/t federal statutory issues, but most agree it cannot deprive state courts of jx to decide federal constitutional questions that come before them in the ordinary course of litigation authorized by state law
- Congress can't limit state court jx because the source of state court jx is the state legislature, not the federal Constitution, and the state courts have to exercise that jx in accordance with the federal Constitution bc of the Supremacy Clause



**B. Proposals for Supreme Court Reform**

- Judicial Ethics:
  - Congress could probably impose code of ethics on SCT through NP clause + Art III
  - That is what congress relied on to make ethics code for the lower fed courts
  - It said its NP to a functioning fed jud with judges with good behavior (the good behavior part gets in there)
- Court expansion/packing:
  - Could also change size of SCT
  - Tit for tat expansion; bigger court → less productive
  - But also history - we have an entrenched norm that there will be 9
- Term Limits
  - Can be done thru constitutional amendment
  - Through statute, probably not bc good behavior (most probably) means life tenure absent impeachment
    - would be weird to say that you can't be in good behavior once you get to a certain age. Good behavior clause is a big obstacle to term limits
  - Rotation program could still be unconstitutional because not the same office
    - have the 9 most junior ppl do most of the work and the senior justices can do other stuff. They can serve on lower federal courts (ride circuit), they can write the federal rules, maybe they can do original jx (or maybe everyone sits for original jx and junior people only for appellate jx), is there a problem if some of the judges are on the original jx?
    - maybe could just *change definition of the office* to be x for # years and then y
  - Probably less effective though, will take decades to see any change bc can't be applied to sitting justices
  - Splitting into panels
    - does it violate the requirement of *one* supreme court?
- Jurisdiction-stripping as reform:
  - Might run into constitutional problems (McCardle - leave an avenue)
  - Effective? Would freeze in place decisions you don't like
  - Inability to resolve circuit splits → lack of uniformity
- How much weight to place on public's perceived legitimacy of SCT?
- Amount of judicial independence you want SCT to have affects how you view these reforms

## C. Requirements for Getting into Federal Court

### 1. Standing

#### Standing Requirements (Lujan):

- Injury
  - Must be **actual/concrete, particularized, imminent** (Lujan, Schlesinger)
  - CANNOT be **abstract, generalized grievance** (Lujan, Schlesinger)
    - Quintessential abstract generalized grievance = govt needs to comply with the law
    - And Congress cannot confer standing to assert abstract, generalized grievance (Lujan)
    - Asserting a special interest in that area of law being administered correctly is not enough (Lujan)
      - Because anyone could claim a special interest
  - CAN be intangible, but still must be concrete (Spokeo)
    - If injury is intangible, can consider whether injury would be recognized at common law or what Congress thinks (Spokeo)
  - Imminent: certainly impending or a substantial risk (Clapper)
    - “Certainly impending” might only be for national security cases
    - Cannot be speculative (Clapper)
  - CANNOT be statutory violation without any harm; that would be insufficient for standing (TransUnion)
  - Manufacturing standing: see note below
- Causation
  - Injury must be fairly traceable to the challenged action; cannot be the result of independent action from 3rd party (Lujan)
  - Chain of causation cannot be too attenuated (FDA v AHM)
  - Object of Govt Action:
    - If plaintiff is not the object of the government action/inaction, will likely be harder to show standing. In other words, hard to have standing if you’re challenging the regulation/lack thereof of someone else (Lujan, Clapper, FDA v. AHM)
- Redressability
- Must have standing at all stages of litigation (VA House of Delegates)
  - Can’t appeal if no longer have standing

#### Article III:

- Standing doctrine derives from “case or controversy” requirement in Art III

### i. Regular Standing

#### Lujan:

- NO standing
- Injuries that would be cognizable:
  - Injury to aesthetic interest in looking at wildlife
  - Injury to occupational interest in studying species
  - Injury to interest in visiting particular place (?)
- But plaintiffs have no plans to go back to see the wildlife → no imminent or concrete injury
  - The party seeking review must be among the injured
- Plaintiff argument:
  - Ecosystem nexus: animals are part of ecosystem and losing them harms us all: Scalia says this is too attenuated, no concrete injury
- Don't want anyone anywhere to be able to sue
- Object of govt action: plaintiffs are asserting injury resulting from the govt's regulation/lack of regulation of someone else → much more is needed to show standing
- The plaintiffs here only have an **abstract, generalized grievance**

#### Congress Cannot Confer Standing (Lujan):

- Largely about the injury prong - can Congress make something an injury for standing?
- Lujan statute included provision that anyone may commence a civil suit to enjoin any person/agency/the US from violating the statute
- A person can't sue just bc govt is not enforcing/administering the laws correctly (unless that person is injured by that)
- **Congress can't use statute to allow people to bring abstract generalized grievances**
- If the redress would not benefit the plaintiff more so than the public at large → likely no standing
- Statutory violation without concrete injury is insufficient for standing

#### Manufacturing Standing:

- Can't manufacture standing for a speculative injury (**Clapper**), but you can manufacture standing for a non-speculative injury/real violation of the law (**Havens, Cruz**)
  - And statutory violation alone is not enough (**TransUnion**)
  - Harms needs to be certainly impending or at least a substantial risk (**Clapper**)
  - Can't injure yourself but can put yourself in a position to be injured
- Clapper: Court thought Ps were just paranoid; don't know if the govt is doing anything, spending this money based on own *speculative* fears; whereas with Haven and Cruz, the law was on the books, and the Haven Ps proved that the law was broken, and Cruz challenged the law

Schlesinger:

- NO standing
- Anti-war group challenged the constitutionality of members of Congress holding reserve commissions in the armed forces
- **Standing can't be predicated on abstract generalized grievance**
- Abstract generalized grievance: something that everyone is affected by the same way
- can't bring suit just because the govt is violating the law if it isn't injuring you specifically - if everyone is similarly harmed/**if everyone has standing, no one has standing**
- Idea that if plaintiff can't sue, no one can sue, is not a reason to find standing
- Concrete injury requirement:
  - adds essential dimension of specificity to the dispute
  - Makes sure that judicial resources are not used unnecessarily (policy)
- You must go through the political process
  - Judiciary isn't place for this – vote, activism, lobbying, etc are proper avenue for large & generalized grievances

Clapper:

- NO standing
- Injury was too speculative
  - Plaintiffs could not show that harm was certainly impending or that there was a substantial risk of harm
    - Still unclear which one plaintiffs have to show - certainly impending or substantial risk (might be that “certainly impending” only for national security cases)
  - Plaintiffs were spending money to try to work around potential spying
    - Can't manufacture standing by spending money
- Causation
  - This statute might not be the cause of the injury anyways bc there are plenty of ways in which the govt can spy on you; this statute not the only cause
- Dissent:
  - Injury req is met bc of course the govt is spying on their convos with family and friends of accused terrorists

Havens Realty:

- YES standing
- White tester and black tester went to apt complex

- white person was told there were units available, black person was told nothing available; violation under Fair Housing Act
- Black person was never intending to actually rent an apt → manufactured standing → but this was ok
- It was an **informational injury**
- White person did not have standing
- FDA v. AHA said that Havens Realty is limited to its context

#### FEC v Cruz:

- Under Bipartisan Campaign Reform Act: you can repay your own loan to your campaign only up to 250k
- Ted Cruz loaned his campaign \$260k and could thus recoup all but \$10,000 of that money → he manufactured standing to challenge this law, but that was ok
- Cited Havens (and this case was in 2022) → suggests Havens is still good law

#### Sierra Club:

- Environmental group manufactured standing by going and spending time in nature park to challenge Disney's plans to build resort there
- Court said they had no standing at first, then they did that, tried again; then had standing

#### FDA v. Alliance for Hippocratic Medicine:

- NO standing
- Pro-life med associations and individual doctors challenged FDA loosening restrictions on the use of mifepristone based on argument that they might have to end up treating a patient with complications from medication abortions; having to facilitate abortion; injury to conscience
- **Injury to conscience can be valid** but injury too speculative and chain of causation too long here
- Not the object of govt action:
  - More difficult to establish standing when plaintiffs are not the ones being regulated
  - They were challenging the regulation (or failure to regulate) someone else → no standing (Lujan)
- Said Havens Realty is limited to its context

#### Zivotofsky:

- The plaintiffs in Zivotofsky had standing; how?
- Court: this is Congress creating a statutory right to have Israel on your passport and that is limited to a class of plaintiffs (American citizens born in Israel)
- Query as to whether this survives Spokeo and Transunion but Grove thinks it would

Spokeo:

- PROBABLY standing (SCT remanded; 9th Cir found standing; SCT denied cert)
- Spokeo = website with information about people
- Had incorrect information about P, made him seem overqualified for jobs
- under the Fair Credit Reporting Act: consumer reporting agencies are supposed to tell the truth, and they didn't, so that is a statutory violation
  - But there must be a concrete injury even in the context of a statutory violation
- Tangible/intangible:
  - Injury must be particularized and concrete, and it must actually exist, but it doesn't need to be tangible. Could be intangible
- if there's history behind recognizing an injury and Congress seems to think it's ok, then it's an injury
  - "Must consider whether an alleged intangible harm has a close relationship to a harm that has traditionally been regarded as providing a basis for a lawsuit in English/American courts"
- Kennedy Concurrence: Congress can't just let anyone sue as it tried in Lujan, have to say what is the harm and create class of plaintiffs to benefit

TransUnion:

- TransUnion offered tool to screen national security threat database; only checked first and last names
- Court split the baby
  - Plaintiffs who were falsely included on the list but their names were not reported to any potential creditors → NO standing
    - Statutory violation with no harm → NO standing
  - Plaintiffs who were falsely included on the list AND their names were reported to potential creditors → YES standing
- It has to harm you in some concrete, tangible or intangible way in order for you to have standing
- If statutory violation without harm isn't sufficient, how do we square this with **Havens Realty?**

**ii. Legislative Standing**Government Standing Generally:

- State and federal executive branches/agencies have standing, no questions asked
- But it gets more difficult when other branches of government try to sue
- Legislative standing:
  - Just a few legislators claiming institutional injury → NO standing (**Raines**)

- But if there are enough legislators claiming institutional injury to have changed the outcome in particular vote → YES standing (**Coleman**)
- If the legislature/institution as a whole is claiming institutional injury → YES standing (**Arizona State Legislature**)
  - Institutional injury = impairment of constitutional power (**AZ State Legislature**)
- If only one body/House of the bicameral legislature sues alleging injury to whole legislature/institution's interests → NO standing (**VA House of Delegates**)

#### Coleman v. Miller:

- YES standing
- Vote in Kansas on a const amendment was tied; state's lieutenant gov cast a deciding vote in favor of the amendment
- legislators who voted against it sued; claimed institutional injury
- SCT said they had standing bc if those legislators were right, then their votes were deprived of all validity.
  - If state lieutenant governor couldn't cast a vote, the 20 who voted against the amendment would've won

#### Raines v Byrd:

- NO standing
- 6 legislators sued because of Line Item Veto Act
- Line Item Veto Act:
  - the President is given the authority to "cancel" certain spending and tax benefit measures after the President has signed them into law.
  - Basically, the President can just cross out a line
- Legislators claimed they suffered an **institutional injury**
  - injury to ability to do their jobs on behalf of the constituents
  - Saying the Act diminishes their power
- Court distinguished Coleman v Miller:
  - In Coleman, the group that was suing was sufficient to defeat the Act and change the outcome.
  - Here, only 6 isn't enough to change the outcome
- Court distinguished Powell v. McCormack:
  - Powell: House Rep who was "excluded" from his job and lost his salary.
  - He had standing
  - There was injury to Powell as an individual; not about legislative standing.

- The appellees here in Raines have not been singled out for specially unfavorable treatment as opposed to other members. The appellees are complaining about an institutional injury which damages all members equally
- The appellees do not claim to have been deprived of something that they are personally entitled to. They are complaining about a loss of political power, not loss of any private right

### Arizona State Legislature:

- YES standing
- AZ voters adopted measure: took power over redistricting *from* state legislature and gave it to independent commission to prevent gerrymandering
- AZ state legislature sued
  - Argued that this violated the **Elections Clause**: the times, places, and manner of holding elections for senators and reps shall be prescribed in each state by the legislature thereof
- This is an institutional entity raising an institutional injury
  - Not just a few legislators suing like in Raines
  - Institution's power was stripped away
  - The institution can bring suit
- But the legislature lost on the merits anyways
- Scalia Dissent:
  - NO standing
  - But they should win on the merits
  - So he thinks they should win but their suit can't be heard anyways
  - Separation-of-powers question raised directly by government subunit not justiciable

### Virginia House of Delegates v. Bethune-Hill:

- Dispute over redistricting in VA; federal district court panel said there was racial gerrymandering; VA AG announced that the state would not pursue an appeal to the SCT; but then the VA House of Delegates appealed
- NO standing for appeal
  - You have to show standing to appeal, and SCT held that the VA House lacked standing to appeal → MUST HAVE STANDING AT ALL STAGES OF LITIG.
- Analogizes to Raines v Byrd
  - Just as individual members lack standing to assert the institutional interests of a legislature, see Raines v. Byrd, a single House of a bicameral legislature lacks capacity to assert interests belonging to the legislature as a whole.
  - Only one chamber of the bicameral legislature asserting an injury to the entire legislature's interests is insufficient for standing



- Alito Dissent:
  - The legislative body has an interest in the makeup/identity of its members; affects how the work will get done; redistricting harms this interest
  - Majority rejects this argument: the House does not select its own members, but rather it is chosen by the ppl

### iii. State Standing

#### State Standing Generally:

- States may have special solicitude (although unclear what this means/if this holds up after US v Texas); partial cause/help sufficient for causation/redress requirements (Mass v EPA)
- “Standing-through-inseverability” argument?:
  - Not argued clearly below in CA v TX, so left open, but states did not have standing because states are not required to buy health insurance under individual mandate/ACA
  - But Haaland v. Brackeen:
    - Court says that there’s no standing-through-inseverability because the provisions that impose costs on TX have nothing to do with the provisions that TX was challenging
- Special solicitude’s downfall?:
  - Court found state standing without relying on special solicitude in Biden v. Nebraska
  - United States v. TX:
    - Majority: did not treat states as special plaintiffs; distinguished Mass v. EPA and noted that there are disagreements about that case
    - Gorsuch concurrence, joined by two others, says that special solicitude has no basis in the court’s jurisprudence before Mass v EPA
    - Alito dissent: are we overruling Mass v EPA?

#### Massachusetts v. EPA:

- YES standing for state of MA to challenge EPA decision re: regulating greenhouse gas emissions from new cars
- Injury:
  - Direct economic injury because coastline getting smaller bc of global warming
    - Concrete injury
    - Dissent says not imminent though
- Causation and redressability problems:
  - There are other causes of global warming besides emissions from new cars
    - Emissions from old cars, coal, cows, other countries, etc

- But Court said emissions from new cars are a partial cause, and addressing it will help
- *Special solicitude*:
  - States get special solicitude for standing, but unclear what this means
- Impact of this case:
  - Lots more litigation initiated by states against the fed govt

### California v. Texas:

- NFIB v. Sebelius: ACA individual mandate was not a proper exercise of the commerce power, but it was valid under taxing power
- Then Congress zeroed out the penalty
- States and individual plaintiffs then sued
- Individual plaintiffs
  - NO standing
  - there was no enforcement mechanism, no penalty to pay, no injury traceable to the individual mandate
- States
  - NO standing
  - “Standing-through-inseverability” argument:
    - States don’t have to comply with individual mandate which they were arguing was unconstitutional, but there were other provisions that did affect them → arguing they can challenge the statute overall
    - States had argued that cost of complying with the ACA reporting requirements gives them injury for standing
    - Even though the part of the statute that they say is unconstitutional (individual mandate) is not causing that injury, they still have standing because the injury is caused by the statute, and striking down the statute will provide redress
    - Different provisions are bound up together in how the law operates, and they should all be held invalid
  - Court did not address this argument bc not raised sufficiently clearly below
  - ACA does not impose any requirement on states to buy health insurance, so states are not injured
  - Leaves open the idea of standing-through-inseverability

### Haaland v. Brackeen:

- NO state standing
- Texas challenging Indian Child Welfare Act

- EP claim: in foster care and adoption proceedings for Native American children, ICWA impermissibly gives a preference to Native American families over non-Native American families
- State did not have standing for 2 reasons:
  - **1. States have no EP rights**
    - EP is a restriction on the govt, allows people to sue the govt; not meant to allow govt to sue. States cannot assert EP claims on behalf of their citizens
  - **2. Standing-through-inseverability argument failed**
    - TX tried to argue that it was injured by the costs associated with keeping records, providing notice, and producing expert testimony, but SCT said that these costs are not fairly traceable to the placement preferences (the challenged provision/basis of the EP claim).
    - The provisions do not rise or fall together
      - “proving that the placement preferences are unconstitutional would not show that enforcement of any of these other provisions violates the Constitution”
  - **TLDR:** Court says that there’s no standing-through-inseverability because the provisions that impose costs on TX have nothing to do with the provisions that TX was challenging; **BUT didn’t reject standing-through-inseverability writ large; just saying it didn’t work in this case, the placement provisions weren’t so integral that they rose and fall together**

#### Biden v. Nebraska:

- YES state standing
- Court upheld state standing in challenge to Biden loan forgiveness plan
- at least Missouri has standing bc Missouri state agency would lose out on admin fees that it would earn from DOE by servicing loans
- Could state of MO represent MOHELA? Yes; the plan’s harm to the agency is also a harm to Missouri bc the agency is a public instrumentality of the state
- Court didn’t mention special solicitude

#### United States v. Texas:

- States want federal govt to arrest and deport more undocumented immigrants
- NO standing to challenge federal executive enforcement of immigration law
- Citing Linda R.S. v. Richard D.: A party lacks a judicially cognizable interest in the prosecution of another
- Special Solicitude:
  - Gorsuch concurrence:
    - the relaxed standing rules for states had no basis in the court’s jurisprudence before Mass v EPA

- lower courts should ignore special solicitude
- Majority:
  - Majority did not treat states as special plaintiffs; distinguished *Mass v. EPA* and noted that there are disagreements about that case
- Alito dissent:
  - Are we overruling *Mass v EPA*?

Policy: Why have special state standing?

- Pros: want to make sure these cases can be heard because:
  - Federalism: Suits by states can act as a check on the federal executive branch
  - Quasi sovereign interests: states have interest in their citizens, should be able to intervene to protect them
  - Public figures like solicitor gen are elected by that state, represent public's interests
  - There are only 50 state AGs plus DC AG: less worried about the floodgates
  - Separation-of-powers: we don't want to get involved when branches of fed govt are suing each other, but might be less of a concern when states sue fed govt
- Cons:
  - Federalism: one state can nullify federal legislature's decisions/federal policy
    - States already have influence over federal govt; does broader standing give them too much power?
    - Should the federal government act independently from what the states want?
  - States can still bring a ton of suits even if there are only 51 state AGs
  - If states can bring suits that private parties would not be able to bring:
    - Open up states to political pressure to sue fed govt for every unpopular policy
    - Could mean that there isn't a real controversy; start to get into advisory opinions
  - Grove hates state standing

Recap of state standing

| YES standing                                                                               | NO standing                                             |
|--------------------------------------------------------------------------------------------|---------------------------------------------------------|
| <i>Mass v. EPA</i>                                                                         | <i>California v. Texas</i> (ACA individual mandate)     |
| <i>Biden v. Nebraska</i> (student loan forgiveness)<br>(not relying on <i>Mass v EPA</i> ) | <i>Haaland v. Brackeen</i> (ICWA placement preferences) |
|                                                                                            | <i>United States v. Texas</i> (imm. enforcement)        |

#### iv. Taxpayer Standing

##### Taxpayer Standing Generally:

- **Separate way of getting Article III standing; don't need to show injury/causation/redress standing as well**
- **General rule: no federal or state taxpayer standing (Hein, Frothingham)**
  - Why?
  - Injury and causation problems:
    - Can't guarantee your dollars are going to a particular program
    - Maybe none of that money is going to it → speculative injury and causation not met
  - Redressability:
    - When govt cuts a program, doesn't mean that they'll reduce your taxes - the money would go to something else → redressability is speculative too
  - Policy: if every federal taxpayer could sue to challenge any Government expenditure, the federal courts would cease to function as courts of law and would be cast in the role of general complaint bureaus (Hein)
- **Exception: two part test from Flast:**
  - **1. nexus/link between taxpayer status and enactment**
    - \*\*this step is where the action happens
    - **The enactment must be an exercise of Art. I tax and spending powers**
      - Not property clause nor military clause, etc
    - **Has to be decision of Congress, not the executive branch (Hein)**
      - If Congress just makes a general appropriation and exec branch makes the decision → no standing (Hein)
      - If there is specific appropriation by Congress, or Congress says in statute religious groups are among the ones benefitted → could be standing (Bowen)
  - **2. nexus/link between taxpayer status and nature of constitutional infringement (Establishment Clause)**
    - **Second step is basically just: is it an Establishment Clause claim?**
- What happened to injury, causation, and redressability?
  - When Flast v Cohen was issued, there weren't clear standing rules
  - This is part of why Scalia is so mad in Hein
  - Sometimes you don't have enough votes to overrule a decision, which is why we end up with messy case law because judges can't agree
- Another way to bring Establishment Clause claims without taxpayer standing is to rely on *offended-observer standing* when applicable (e.g., if 10 Commandments are being displayed) (injury to aesthetic interest is cognizable (**Lujan**))

- But Court has been doubting its validity lately

### Flast v Cohen (1968):

- Recognized narrow exception to general constitutional prohibition against taxpayer standing
- If plaintiff is challenging a **law** authorizing use of federal funds as a violation of the Establishment Clause, might have standing based on 2 part test:
  - link between taxpayer status and enactment
    - has to be an exercise of the taxing or spending power because those are the constitutional provisions that implicate taxpayer status
  - Link between taxpayer status and nature of the constitutional infringement
    - I.e., it has to be an infringement on the Establishment Clause
      - Historically: taxes going to violation of Establishment Clause is not just financial injury, but also an injury of conscience; don't want people to be forced to support a religion they don't believe in

### Hein v. Freedom from Religion Foundation, Inc:

- Plaintiff (Freedom from Religion Foundation) was challenging executive orders by Bush administration supporting faith-based organizations
- Fails Flast Prong 1:
  - No link between taxpayer status and congressional enactment because *there is no* congressional enactment allocating funds to be used for this program. Congress didn't do anything. This was all Bush using general exec branch appropriations.
  - No congressional action → NO taxpayer standing
- Don't want to extend Flast to encompass discretionary executive branch expenditures
- If exec ever does start endorsing a religion, Congress could step in or a plaintiff who actually has standing can sue
- Scalia Concurrence and Souter Dissent say there's no reason to make a distinction between Congress v. the executive branch handing money over to religious orgs

### Valley Forge:

- Exec branch gave a piece of property worth half a million dollars to a private, religious org
- NO standing for two reasons:
  - 1. it was the executive branch doing this, not Congress
  - 2. Also, exec branch was using *delegated* power under the Property Clause; different from taxing/spending power (so missing the link between taxpayer status and enactment because the enactment was not an exercise of the taxing or spending power)

Bowen:

- YES standing to challenge Adolescent Family Life Act (AFLA), which allowed federal grants to go to private religious orgs
- Congress created, authorized, and mandated the program, and it acknowledged that some of the money would go to religious orgs, but the decisions were administered through the executive branch pursuant to that statute
- Satisfied Flast test

## Recap of taxpayer standing

| YES standing                                                         | NO standing                                                          |
|----------------------------------------------------------------------|----------------------------------------------------------------------|
| Flast                                                                | Valley Forge<br>Transfer of property<br>Exec branch, Property Clause |
| Bowen v. Kendrick<br>Congress's decision - administered by executive | Hein<br>General appropriation<br>Exec branch                         |

v. **Third Party Standing**Third Party Standing Generally:

- Prudential issue
- Party might technically have standing under Article III, but if they're asserting someone else's rights, there is a **presumption against adjudicating someone else's rights (who isn't party to the suit) (Singleton)**
- **Issue spotting:** is the litigant before the court asserting the rights of someone else?
- **Test (Singleton):**
  - **1. Plaintiff has Art III standing**
  - **2. Close relationship between plaintiff and 3rd party**
    - Exercise of 3rd party's rights depends on the plaintiff
      - "The enjoyment of the [third party] right is inextricably bound up with the activity to litigant wishes to pursue"
      - I.e., the third party's ability to exercise its right depends on the plaintiff being able to do or not do whatever it is they're complaining about
      - **seller/buyer relationship** works (Eisenstadt, Craig)
      - They were hypothetical clients → no close relationship (Kowalski)
    - Plaintiff would be a **good representative?** (Singleton)
      - Not absolutely necessary but nice to add

- If you have economic incentive to do a good job, that might work (Craig v. Boren)
- **3. There's an impediment/obstacle to 3rd party asserting their own rights**
  - Could be legal or practical
  - Gentle requirement: obstacle does not need to be completely insurmountable (Singleton)
  - Think: would an occasion arise where the third party would be able to bring suit? If not, 3PS ok (Barrows, Eisenstadt)
  - But if it's been done before, might be harder to convince court that there's an obstacle (Kowalski)

#### Singleton v. Wulff:

- YES standing
- Doctors challenging MO statute: no Medicaid benefits for abortions that are not medically indicated
- Doctors have Art III standing:
  - Concrete injury bc they are not getting reimbursed for abortions because of this statute; redressable by overturning the statute
- But they are asserting the rights of third parties not involved in the suit:
  - they don't want to attack the validity of the statute on this basis because this is an economic regulation → RB
  - So they are seeking to attack it as an unconstitutional interference with right to terminate a pregnancy → heightened scrutiny
- Even though there is Art III standing, the Court could still refuse to hear the suit for prudential reasons
- Test - see notes above
- Step 1: Drs have Art III standing ✓
- Step 2: Drs have close relationship with patients seeking abortions ✓
  - The women need the plaintiffs to get safe abortions
  - Physicians are intimately involved with making that decision
- Step 3: Impediment/obstacle to third party asserting own rights ✓
  - Protect privacy
  - Women are not the object of the regulation, but rather the doctors
  - Impending mootness: need to either give birth or get an abortion, or beer buyers will turn 21 (Craig)
  - (although there are potential solutions to these problems, court says these obstacles are sufficient to allow 3PS)

#### Barrows v. Jackson:

- YES, defendant may assert 3rd party's rights



- Landowners sued fellow landowner who broke racially restrictive covenant by allowing Black family to move into her house
- They sued the landowner for damages rather than sue the Black family because of Shelley v. Kramer (couldn't enforce the covenant to get Black people to move out)
- **Not technically about 3PS** but Q was: can the white landowner assert the EP rights of the Black family?
- \*IMPEDIMENT: Court said yes, since it would be difficult if not impossible for the Black family to assert their own rights
  - Practical obstacles: courts wouldn't want to hear the claim
  - Legal obstacles: no negative action being taken against the family
- (And relationship: buyer/seller)

#### Eisenstadt v Baird:

- YES standing
- Baird gave public lecture about contraception and distributed contraceptive foam
- It was unclear if Griswold privacy interest applied only to married couples or to single individuals too
- Step 1: Art III standing ✓
  - This was habeas action; doctor was being criminally prosecuted
- Step 2: Close relationship ✓
  - buyer/seller relationship: third parties need the distributor to access contraceptives and exercise their right to privacy to use contraception
- Step 3: Impediment ✓
  - Stigma, privacy
  - unmarried people/people getting contraceptives were **not** subject to prosecution and were therefore denied the forum to assert their rights

#### Craig v. Boren:

- YES standing
- Saloon-keeper suing because can't sell beer to 18-21 year old men
- saloon-keeper was allowed to raise the equal protection rights of young men to buy beer at the same age as young women
- 1. Art III standing ✓
- 2. Relationship ✓
  - Similar to Eisenstadt: 3rd party needs a seller to exercise right to purchase beer; right to purchase beer is bound up with the beer vendor
- 3. Impediment ✓
  - Potential mootness when man turns 21
- Grove: this is liberal application of TPS

Kowalski v. Tesmer:

- NO standing
- lawyers had been appointed as appellate counsel for indigents, but then legislators made change to MI constitution → 1) no more right to appeal; can only appeal by leave of the court; (2) no more right to appointed appellate counsel for indigents
- Question: could the lawyers raise the rights of prospective indigent defendants to have appointed counsel on appeal? NO
- 1. Assumed Art III standing
- 2. Relationship? ❌
  - They were hypothetical clients → no close relationship
  - Not really consistent with the other cases. Did *Singleton* doctors know everyone who was going to come for abortion? Did beer seller know every 18 year old who would come buy beer?
- 3. Impediment? ❌
  - We might think that indigent criminal defendants would have obstacles to asserting their own rights: no money to hire atty on their own, not a lot of knowledge about the legal system
  - But Court said there was no particular obstacle because there were some defendants who had done it before

Whole Woman's Health v. Hellerstedt AND June Medical v. Russo:

- YES Standing
- Both involved challenges to abortion regulation requiring doctors performing abortions to have admitting privileges at a hospital
- 1. Art III Standing ✅
  - Doctors have to get admitting privileges
- 2. Relationship ✅
  - Need to go to the doctor to get the abortion
- 3. Impediment ✅
  - Would be difficult for patients to have standing because they are not the objects of the regulation
  - Also stigma, privacy
- Thomas Dissent in both:
  - Limitation on 3PS comes from Art III, not prudential concerns
  - women seeking abortions have successfully and repeatedly asserted their own rights before this Court → no obstacle
  - Drs don't have standing because their rights are not affected

Policy:

PRO 3PS:

- Generally plaintiff-friendly
- Allows the ones who are best positioned in terms of resources/financial incentive to challenge a law to bring suit
  - Think what would happen if doctors hadn't been able to challenge regulation in **WWH/June Medical** immediately? Clinics would have closed
- If the third party is not the object of the regulation, then it might be difficult for the third party to even have the opportunity to assert their rights (see **WWH v. Hellerstedt, June Medical v. Russo, Eisenstadt**)

## ANTI 3PS:

- Waste of judicial resources (**Singleton**):
  - The courts should not adjudicate rights of third parties unnecessarily
  - Maybe the third parties don't want to assert their rights, or they will be able to enjoy them regardless of whether the in-court litigant is successful or not
- Adversarial system (**Singleton**):
  - third parties themselves usually will be the best proponents of their own rights
  - Potential conflict of interest between plaintiffs and third parties
    - I.e. in **June Medical**: Thomas dissent said that plaintiffs wouldn't want the burdensome regulations but they serve interests of the patients

## 2. Mootness/Ripeness

### Standing, Ripeness, and Mootness Generally:

- Standing:
  - plaintiff must show standing for each form of relief sought (**Lyons**)
- Ripeness:
  - Art III ripeness = Art III standing injury requirement, particular imminent and concrete injury (see **O'Shea**)
- Mootness:
  - Definition: if plaintiff is no longer suffering injury redressable by the court → moot
- Exceptions to mootness - **both as to plaintiff**:
  - Voluntary cessation of illegal activity: defendant can't get the suit dismissed as moot by stopping the illegal activity
    - But if the defendant can show there's no reasonable expectation that wrong will be repeated (as to plaintiff) → then moot
    - Worried that otherwise, D will continue harming the P right after case is dropped
    - Honing v. Doe - could be generous test; Court might be flexible in saying that it could happen to the P again
  - Capable of repetition yet evading review (as to plaintiff)

- If moot → lower court decision is vacated

### i. Ripeness

#### O'Shea v. Littleton:

- Plaintiffs were alleging that judges were illegally bond-setting and sentencing
- The plaintiffs would have to be arrested again, charged, placed in proceedings before those judges, have bond set illegally high → too much speculation, too attenuated, chain of causation too long, not imminent, not concrete
- Article III ripeness is basically same as the **imminent and concrete injury** requirements of standing
- If a plaintiff has Art III standing for a claim, it's going to be ripe as a matter of Article III

#### City of LA v. Lyons:

- Lyons was put in chokehold after police pulled him over for broken taillight
- He had standing for damages claim but **NOT** injunctive or declaratory relief because he couldn't show that it was more likely to happen to him than any other citizen of LA
- **Need standing for each form of relief sought**
- P can argue that it is more likely to happen to P than other people and reframe the injury to something more likely
- If claim is for declaratory or injunctive relief: need to show future injury

### ii. Mootness

#### Mootness Generally:

- Mootness requires that a live controversy exist throughout the litigation
- If a live controversy ceases to exist at trial/if the plaintiff is no longer suffering an injury redressable by the court, the case will be dismissed as moot
- **Exam:** make sure it's actually moot before launching into exceptions
- Mootness is generally considered part of Art III, although some think its prudential

#### Mootness EXCEPTIONS:

- If a case seems moot, look for one of the exceptions
  - **1. Voluntary Cessation of Illegal Activity**
    - Voluntary cessation of illegal activity does NOT make a case moot (**WT Grant Co**)

- Rationale: if voluntary cessation of illegal activity could make a case moot, then the defendant could stop doing it, case gets dropped, and then they start again after
- But Defendant can defeat the exception: Defendant has the burden to show that is more likely than not that there is NO reasonable expectation that the wrong *will* be repeated
  - A mere disclaimer of intent does NOT suffice
  - BUT in **Already, LLC v. Nike**, the parties making a legal covenant to never bring a suit DID satisfy this requirement
- Cases:
  - Company: “the bad-apple directors resigned, we won’t do it again!”: SCT didn’t buy it, case was not moot (**WT Grant Co**)
  - City: “we won’t reenact this same unconstitutionally vague ordinance!”: SCT didn’t buy it, case was not moot (**Aladdin’s Castle**)
  - City: “we won’t reenact the same ordinance, but we will/might reenact a slightly different one” → case not moot (**Associated General Contractors**)
  - City: “we won’t reenact the same ordinance, and we can’t reenact it or a similar one because the state law now prohibits it” → case IS moot, decision vacated (**NYS Rifle**)

## ● 2. Capable of Repetition Yet Evading Review

- typically invoked when the specific dispute has been mooted by the passage of time but the same issue is likely to arise again between the same parties
- Is it capable of repetition?
  - Reasonable expectation that the same controversy will recur **as to the same plaintiff**
- Is it evading review?
  - Will the situation likely become moot before litigation can get to court?  
I.e. pregnancy only lasts 9 months, referendum will come and go before judicial review is complete
- Situations capable of repetition, yet avoiding review:
  - Fight about a referendum: the particular referendum failed to pass before judicial review can be completed, but capable of repetition because the same referendum could be tried again, or could challenge the same restriction with regards to a different referendum (**First National Bank of Boston v. Bellotti**)
  - Pregnancy: as long as plaintiff can get pregnant again, it is capable of repetition yet evading review because litigation takes longer than 9 months (**Roe v. Wade**)
  - A campaign finance regulation, assuming the candidate decides to run again in the future

- Pre-trial detentions, assuming criminal defendants could not get their suit to the SCOTUS before the criminal trial was over
- **Honig** suggests that there is a certain laxity in administering the “capable of repetition, yet evading review” standard

United States v. W.T. Grant Co.:

- Antitrust action brought by govt; company directors resigned; Ds said the case was moot
- Court: voluntary cessation of allegedly illegal conduct does not make the case moot

City of Mesquite v. Aladdin’s Castle:

- A municipal ordinance was repealed, then declared unconstitutionally vague
- City tried to get the decision vacated
- SCT said if the decision below were vacated, the municipality would be free to reenact the same ordinance → case was not moot

Associated General Contractors:

- Jacksonville implemented minority set-aside program
- Associated General Contractors challenged it
- When SCT granted cert, city repealed it and enacted a more carefully constructed replacement
- The fact that the city had repealed the ordinance at issue in the case did not make the case moot: otherwise, cities could just repeal a statute and enact a slightly different one to avoid review

New York State Rifle & Pistol Ass’n, Inc. v. City of New York:

- YES, case moot!
- NYC ordinance prohibited guns except at firing ranges; it survived district and appellate courts, but then SCT granted cert
- NYC amended the ordinance *and* NYS changed state law to prohibit local ordinances like the challenged one
- Distinguish *Associated General Contractors*? Here the state law changed as well to make the old NYC ordinance illegal
- Alito Dissent: this decision allows people to manipulate the court’s docket

First National Bank of Boston v. Bellotti:

- Corporations challenging statute that prohibited them from spending money to influence voter referenda on issues that don’t materially affect business interests (statute also specified that referenda about taxation of individuals do not materially affect business interests)
- There was a referendum re: taxing individuals

- Referendum had failed by the time it got the SCT
- Court found that the issue was capable of repetition yet evading review → NOT moot

#### Honig v. Doe:

- Plaintiff-student was expelled because emotional disability was disturbing classmates, potentially in violation of stay-put provision of Education of the Handicapped Act
- Student had not returned to school but he still had the emotional disability, no longer in the SF school district
- There was a reasonable expectation that the problem would recur
- \*\*General rule is that it has to be the same plaintiff:
  - the wrong has to be repeated as to the plaintiff for voluntary cessation and capable of repetition yet evading review as to the plaintiff. The same plaintiff.
  - Even if its not 100% clear that it will happen to the P again, it has to be capable of happening to the same P
- Honig suggests a certain laxity in capable of repetition yet evading review standard
  - Might not happen again between exactly the same parties, but the same plaintiff could face same problem at a different school, or the same school could face same problem with different students

#### DeFunis v. Odegaard:

- YES moot
- DeFunis = white guy who sued University of Washington Law School, saying that the school's minority admissions program violated EP (his app was rejected)
- DeFunis won in trial court, was admitted
- By the time it got to SCT, he was in his last term, Uni agreed they would let him graduate
- Not capable of repetition because he's not going to go to law school again, and there were no other plaintiffs (not a class action)
- Court's decision was not going to change anything either way as to these parties

#### Relationship Between Mootness and Standing:

- Mootness is like standing but over time: there must be a personal interest at the outset of the litigation (standing) that continues throughout the litigation (mootness)
- Although there's not CORYER exception to standing → maybe standing is more rooted in Art III than mootness

### 3. Nationwide Injunctions

#### Definition:

- Injunction issued against the govt (usually federal govt) stopping the govt from doing something not only as to the parties in the case but **as to anyone**

History of NIs:

- Courts started using them around the 1930s
- Judicially made up doctrine (but judges make up doctrines all the time, such as judicial review)
- Coincides with nationalization of policy, more national govt activity, more executive presidential activity
- But just because they didn't exercise the power earlier, doesn't mean they didn't have it. Maybe courts just didn't need it.

Constitutional Problems?:

- Inconsistent with Art III case or controversy requirement - standing?
  - Courts can only award relief to the parties in the case bc of the case or controversy requirement
  - But to award relief to the parties in the case, sometimes courts need to fashion remedies that will also affect lots of other people
  - Some say NIs are ok in these limited circumstances but then they disagree on when those circumstances are met
- Concerns about separation of powers
  - Do courts have a role in issuing nationwide policy? Or are judges doing something that should be done by the legislature?
    - But courts strike down federal statutes all the time, like in *Marbury v Madison*
- No historical basis for this
- Not expressly allowed by any constitutional provision
  - But same with lots of doctrines

OBJECTIONS to NIs:

- Unfair: one court decision to apply to everyone, including plaintiffs who were not parties to the case
- Legitimacy: Lead to forum shopping, which harms judicial integrity/legitimacy
- Undemocratic: overriding the will of the voters
- Asymmetry: if fed govt wins one case, different plaintiffs can keep trying to get NI; but if fed govt loses one case, that's it, it gets enjoined
- Hasty: NIs happen too quickly
  - Litigation takes a while but it leads to a well-reasoned conclusion with fleshed-out facts
  - Court might not be thinking through the issue carefully enough/considering all the implications
- Diversity:



- NIs stop percolation, so we don't have benefit of multiple courts considering the issue
- Rebound:
  - Might be a quick victory, but not long lasting; can lead to rapid, significant changes in fed policy
- Possibility for conflicting injunctions:
  - Mifepristone litigation: two conflicting injunctions issued on mifepristone on same day, impossible for FDA to comply with both → SCT has to decide very quickly → shadow/emergency docket

#### BENEFITS of NIs:

- Efficacy: In some situations, it can be difficult to fashion relief that applies only to the parties of the case
  - Brown v. Board = racial segregation of schools is unconstitutional. If the relief was limited to allowing Linda Brown to go to the school, that wouldn't be effective. Need to fix the whole school district/all the school districts
  - Redistricting/Gerrymandering: in order to remedy the harm, need relief that will affect lots of people
- Consistency/uniformity:
  - Immigration: can't have different immigration policies applying in different states based on which state sues
- Efficient:
  - These tend to move quickly
  - Example: travel ban implemented in late January; by early February there was NI
  - Saves judicial resources
- Separation of powers:
  - Check on the executive

#### **4. Political Question Doctrine**

##### PQD Generally:

- Justiciability is a subset of jurisdiction
- Even if someone has standing, if the issue is a PQ → nonjusticiable, court lacks SMJ, won't hear it
- Courts have said this is a matter of Art III, but seems up for debate
- **Presumption is that court does have jx to decide issue (Zivotofsky)**
- **EXAM: Issue Spotting:** ONLY bring up PQD for these issues:
  - **Congressional proceedings**
    - Something like Powell v. McCormack: can congress kick out one of its members?

- **Election-related disputes**
  - Like Rucho
- **Foreign Affairs**
  - Like Zivotofsky or Goldwater

6 Part Test from Baker/Zivotofsky: (Focus is on the first two prongs)

- **1. Textual commitment to another branch**
  - Constitution's text says that another branch decides
  - If it's another branch's job, it's not the court's job
- **2. Lack of judicially manageable standards**
  - Judiciary can't create test to decide an issue
- **3. Prudential Considerations**
  - Eg foreign policy, need for finality (esp in foreign policy era) - **Goldwater**
  - Is this an issue that courts should stay away from?
  - There could be other policy considerations on top of it
- Other factors considered by many PQD cases (but not applied by the Zivotovsky majority), as laid out in Baker v. Carr:
  - The impossibility of deciding the case without an initial policy determination of a kind clearly beyond judicial discretion
  - The impossibility of a court's undertaking independent resolution without expressing lack of the respect due to coordinate branches of government
  - An unusual need for unquestioning adherence to a political decision already made
  - The potential of embarrassment from multifarious pronouncements by various departments on one question
- **EXAM:** \*\*outcome really depends on how you define the issue
  - The Zivotofsky/Baker v. Carr test essentially comes down to framing. If you want the Court to hear a case, frame the issue as something typical and everyday (ex. Determining the constitutionality of law); if you want the Court to dismiss the case as a political question, frame the issue as something that "scares" them / as a responsibility they don't want to deal with (ex. Determining the legal status of Israel)

Zivotofsky: [NO PQ]

- "Jerusalem, Israel" passport case
- Fed govt wants case dismissed so they don't have to put Israel on the passport
- NOT a PQ → there was jurisdiction
- **Presumption is that court has jx to decide**
- Courts cannot avoid their responsibilities merely because the issues have political implications

- Court said they are just deciding the validity of the statute, which they do all the time. Not deciding the status of Jerusalem
  - “Zivotofsky requests that the courts enforce a specific statutory right. To resolve his claim, the Judiciary must decide if . . . the statute is constitutional. This is a familiar judicial exercise.”
  - Note: Spokeo and Transunion came after Zivotofsky, but in light of those cases, now it’s unclear if someone can bring suit just to enforce a statutory right conferred by Congress

Goldwater v. Carter: [YES PQ]

- YES PQ → no jurisdiction
- members of Congress sued President Carter to challenge his authority to terminate a mutual defense treaty with Taiwan
- 1. Textual Commitment?
  - It does not say in const how to abrogate treaty
  - But it does say that either congress or president have foreign policy powers
- 2. Judicially manageable standards?
  - Court doesn’t seem to think there are judicially manageable standards here
  - the issue should “be controlled by political standards.”
- Involved foreign relations: Court didn’t want to get involved in foreign policy issue
- Practical concerns: imagine the implications if SCT said President couldn’t abrogate the treaty after he’d already done it
- Separation of powers concern: Court did not want to have to settle a dispute btwn equal branches of govt

Rucho v. Common Cause: [YES PQ]

- Partisan gerrymandering case
- Court said YES PQ, no jurisdiction
- 1. Textual Commitment?
  - Elections Clause: time/place/manner of elections is set by state legislature, but subject to Congress’s review
  - But SCT has already reviewed election cases re: one person one vote, racial gerrymandering → can’t rely on textual commitment prong because they already have all this jurisprudence, don’t want to throw it into doubt
- 2. Judicially Manageable Standards?
  - Court says there are no judicially manageable standards here
  - Court says legislatures can take partisanship into account in some respects when carving up districts, but we don’t know how much is too much. Just can’t figure it out. Nothing we can do

- There is mandatory SCT review in election cases, so majority may have been worried about SCT getting lots of cases about redistricting
- Majority says plaintiffs have other options:
  - State courts
  - Independent commissions (even though Roberts had dissented on something ?)
  - Congress
- Kagan Dissent:
  - How can you tell people to go to the political process when they're saying the political process is rigged

## **D. Judicial Federalism**

### **1. Independent and Adequate State Law Ground**

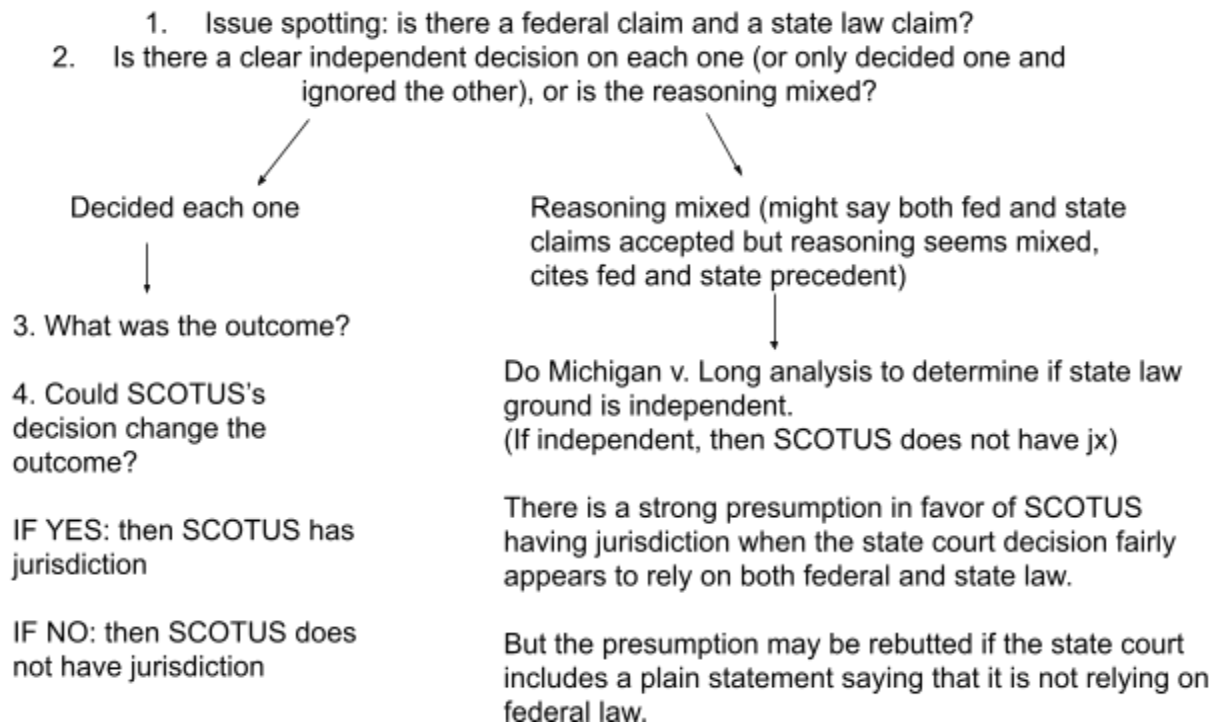
#### **Independent and Adequate State Law Ground Generally:**

- **Rule: if state court judgment is supported by an independent and adequate state law ground → SCOTUS lacks appellate jurisdiction**
  - Note: applies only to SCT appellate jurisdiction over state courts
  - As long as the state court judgment is supported by state law, SCOTUS cannot review anything that the state court has said about fed law, no matter how much state court said about fed law

#### **Exam:**

- **Issue spotting: is there a federal claim and a state law claim?**
- **1. What did the state court decide about each one (or is the reasoning mixed)? What is the outcome?**
- **2. Could SCOTUS's decision change the outcome?**
  - If no → no jx, just advisory opinion
  - If yes, continue
  - NOTE: if the claims were dismissed because didn't comply with state court procedure, that's an independent and adequate state law ground (based on the state procedural laws) → no SCT direct review (but maybe habeas?)
- **3. What was the basis for the state court decision?**
  - If decision based only on state law and ignored the fed law claim - ?
  - If decision based only on federal law, then SCOTUS has jurisdiction
  - If state court made two decisions: a decision about state law claim relying on state law and a decision about the federal law claim relying on federal law, then SCOTUS has jurisdiction over the federal law claim
  - If decision seems to rely on both → do the ind and ad analysis
- **4a. Adequate?**
  - Does the state law ground actually support the judgment
  - Came up in civil rights cases; SCOTUS would ask if the state law was being applied consistently over time.
  - This prong doesn't carry much weight these days
  - State law basis for the lower court decision is not adequate if it conflicts with or undermines federal law
- **4b. Independent? (Michigan v. Long)**
  - **Presumption:** when state court decision fairly appears to rely on both fed and state law, yes jurisdiction
  - Rebut the presumption: state court must include **plain statement** saying that it is not relying on federal law

- Court now says this is constitutional requirement, but reading says its prudential



### Policy:

PRO ind and ad state law ground doctrine (want to remove SCT jx):

- Avoid advisory opinions
  - Don't want to announce their thoughts outside the context of a case or controversy
  - If there is ind and ad state law ground → no matter what SCT does, result will be the same. Any opinion issued would basically be an advisory opinion
- Federalism: Respect for state courts
  - fed courts are in charge of fed law, state courts are in charge of state law

ANTI ind and ad state law ground doctrine (want SCT jx):

- Want SCT review so that there is uniformity in fed law
- Response to Warren court revolution in crim pro: don't want state court judges expanding rights for crim Ds beyond what the fed const provides

### Michigan v. Long:

- There was a search of Long's car - Long was relying on the Michigan constitution and the Federal const to argue search was invalid
- Michigan SCT had ruled in his favor citing both the MI const and the Federal const; reasoning kinda mingled together

- If the state court's decision had been based on independent and adequate state law ground, and the state court held that the defendant should be let go, then he's protected by MI const, there's nothing for Supreme Court to say → no jx
- But it was unclear here whether state court's decision was based solely on state law. Were the federal and state constitutional analyses actually separate?
- So how does SCT determine if the decision relied on state law so it was independent of federal law?
- **Presumption:**
  - When state court decision "fairly appears" to rely on both federal and state law (and not clear that state law ground is independent) → then presumption is that SCT has jx
  - Presumption in favor of jx
  - Note that this may not be so protective against advisory opinions
- **Rebut the presumption:**
  - State court can rebut the presumption by including a **plain statement** that its decision rested on an adequate and independent state ground
  - But state court didn't do that here

#### Stevens Dissent:

- SCT should not intervene unless truly necessary
- MI Supreme Court had let the D go; MI simply provided greater protection than the fed const does; this type of case should not concern the court; Court should be more concerned when individual rights are denied

#### Scenarios:

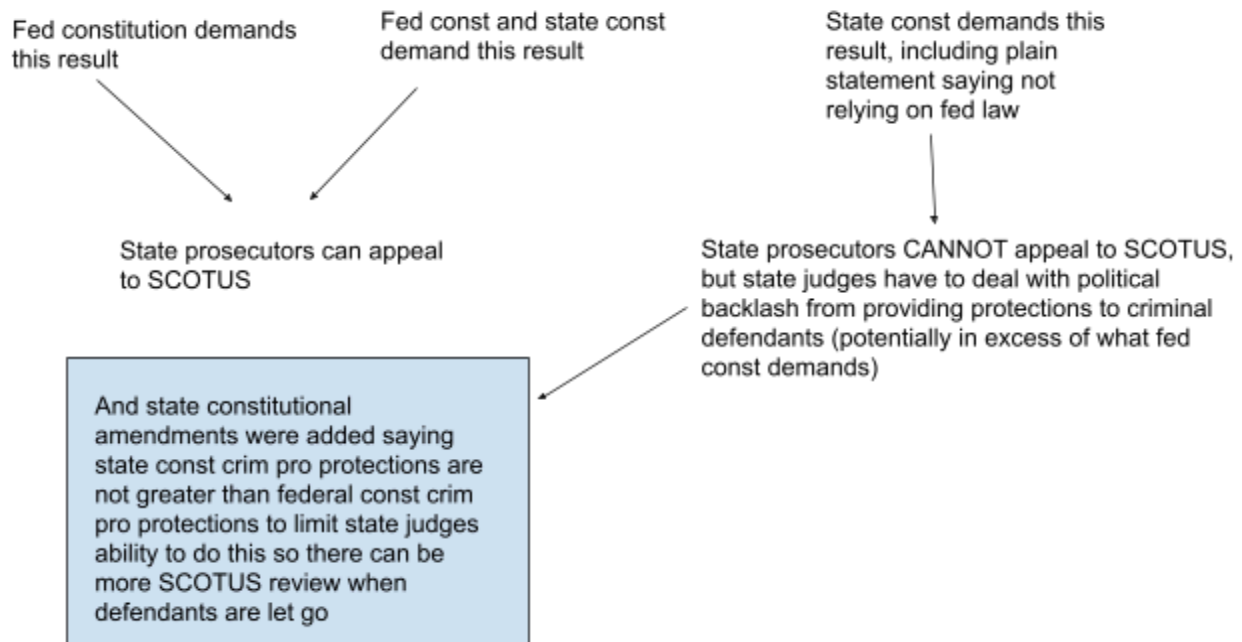
1. State court expressly **denies both** the criminal defendant's federal and state law claims and upholds the conviction, so D is still in jail
  - a. State court made decision about federal law, and the decision on the federal law claim could change the outcome depending on SCOTUS's review → **SCOTUS has jurisdiction for the federal claim**
  - b. SCOTUS might not necessarily change the outcome, but just the possibility is enough
  - c. SCOTUS can't/won't review the state law claim
  - d. Don't even need to think about Michigan v. Long here. Only comes in when it's not clear that the state law and fed law are independent of each other. Here, the state law ground is independent but not adequate because the person could go free on fed const claims
2. State court **denies** federal claim but **accepts** state law claim → overturns the conviction so D is free
  - a. The decision was independent: based on state law, and adequate → **NO SCT appellate jurisdiction**

- b. If the SCT takes up the case, they're not going to change the outcome
  - c. State law simply provides more protection than federal law
- 3. State court **ignores** federal claim and **accepts** state law claim → overturns the conviction so D is free
  - a. that would be independent and adequate state law ground, rests entirely on state law → **NO SCT appellate jurisdiction**
  - b. Defendant is free either way
    - i. If SCOTUS accepted fed law claim, then he's free
    - ii. If SCOTUS rejected fed law claim, he's still free because SCOTUS's decision about federal law is not going to change the state court's decision about state law. The state simply provides more protections than the fed law does.
- 4. State court **ignores** state law claim and **rejects** fed claim → D still in jail
  - a. SCOTUS review could change the outcome bc if SCOTUS decides to accept fed claim → conviction is overturned → **YES SCOTUS has jurisdiction**
- 5. State court **accepts both** federal and state claims; cites both federal and state law
  - a. Don't have a clear answer here

Chart: Effects of Michigan v. Long:

- Case was not friendly to state courts, but it was friendly to state and local prosecutors

State court decision providing protections to state defendant: it can either say:





## 2. Abstention

**Abstention: Fed court has constitutional and statutory jurisdiction, yet declines to hear the case on PRUDENTIAL grounds**

### Pullman Abstention:

- Issue Spotting: Is there a federal constitutional claim and a state law claim? Are you *pulling* at straws making different claims?
- **Only will abstain if the state law is unclear, AND the state law could resolve the case**
- Way of avoiding deciding federal constitutional questions
- Usually the fight is about how clear or unclear the state law issue is

### Railroad Commission of Texas v. Pullman Co.

- Texas RR Commission: conductors have to be in charge of sleeping cars (conductors were white, porters were Black)

#### Two Claims:

- Pullman Railroad Co brought EP claim - discrimination against their AA employees (even though they could just hire Black people as conductors...)
- Second claim: Commission did not have state law authority to do this
- So there is BOTH a FEDERAL CONSTITUTIONAL CLAIM and a STATE LAW CLAIM: the federal court can abstain when the state law is UNCLEAR and when the state law ground would DECIDE the case
- This was a way of them avoiding deciding a politically charged issue about racism

### Pullman Abstention Procedure:

- The fed court will stay the case: keeps it open/on the docket, they just hold it and tell the litigants to go to state court and ask them to resolve the state court issue. Possibility of returning to fed court after is still there.
- Problems with this approach?
  - Litigants chose federal court for a reason, and they have federal constitutional claims
  - Creates a ton of delay, potentially 6-8 years or longer
  - Federal courts would use Pullman to delay cases involving civil rights claims; they would zero in on the state law issue

### Alternative to Pullman: Certification:

- Federal courts can certify a question to state court, and then once they get an answer, they can decide the case
- Most states allow this, but state courts can always say no

- Could be risk of advisory opinion, but fine for state courts to issue advisory opinions unless something in state const prohibits it

### Younger Abstention:

- **Federal court won't enjoin a pending state criminal proceeding or civil enforcement action**
- Even if federal court action is filed first, the courts will still abstain
- *Shows trust for state courts; federalism*
- Applies to suits for declaratory relief as well as injunctions (**Samuels**)
- Even if the federal complaint is filed first, if no proceedings of substance on the merits have taken place in the federal case yet and the state brings an action in state court, then the federal court will abstain (**Hicks**)

### Younger v. Harris:

- Defendant prosecuted under CA state law banning certain subversive speech; D brought suit in federal court, claiming 1A violation
- There was an on-point statute (Anti-Injunction Act) but the court made up doctrine instead
- Court: Fed courts generally cannot enjoin pending state criminal prosecutions (but note this applies to civil enforcement actions too)
  - historically, courts of equity would not act if there is an adequate remedy at law; in this case court is saying it doesn't make sense for us to step in because Harris has adequate remedy - he can bring his 1A claim in the crim pros, which would be more efficient anyways
  - If federal courts *could* enjoin → violation of federalism
- **Catch 22** - *if you haven't been prosecuted yet, you don't have standing bc speculative, but if prosecution has started, then Younger abstention applies*

### Exceptions to Younger:

- 1. Bad faith or harassment
  - Dombrowski
    - Civil rights org office continuously raided by police
    - Court would dismiss bc it was unconst raid (?)
    - They kept doing it
- 2. Or if the law is patently unconstitutional
- 3. Other extraordinary circumstances
- **Virtually impossible, exceptions haven't mattered at all in practice**
- Overall, Younger abstention has turned out to be a very firm rule:
  - pending state pros → fed courts stay away

Younger Abstention Procedure:

- In sharp contrast to Pullman procedure in which fed court keeps the case on the docket; the procedure here is to dismiss the case

Samuels v. Mackell

- Younger abstention is not just for injunctive relief but declaratory relief too
- Can't issue declaratory judgment if there is a pending state court pros

Hicks v. Miranda

- Theater owners filed suit saying the obscenity statute was unconstitutional; the next day, state DA brought charges against the theater owners
- When state criminal proceedings begin against the federal plaintiffs *after* the fed complaint is filed but *before* any proceedings of substance on the merits have taken place in the federal court, Younger v. Harris applies
- No hearings had started yet in the federal case - so the fed court will still abstain
- Stewart Dissent: this is an open invitation to state officials to institute state proceedings in order to defeat federal jurisdiction when someone sues the state in fed court

Colorado River Abstention:

- Rivers have currents → **concurrent federal and state court proceedings seeming to involve the same thing**
  - There is a case in federal court, and a case in state court
- **Presumption: courts can hear these cases; the norm is that federal and state courts can have concurrent jurisdiction**
- When might a court abstain? (don't need to meet all 5 factors, no one factor is determinative)
  - **1. Federal policy:**
    - McCarren Amendment - this statute doesn't actually deprive the courts of jx but seems like they would have liked that; want water rights to be disputed in single proceeding
  - **2. Dispute over property**
    - If dispute is over property: you either get the property or you don't; should be decided in single proceeding
  - **3. Whether federal forum is inconvenient**
    - number of parties, distance from court
  - **4. Avoiding piecemeal litigation**
    - Note this factor will always weigh in favor of dismissing federal case
  - **5. Order in which jurisdiction was obtained**
    - if the state court got it first, the fed court might abstain.

- Although in Colo River, the fed court got it first and still abstained; maybe because it hadn't gotten very far along in the case
- Squishy standard
  - Doesn't mean fed courts always abstain
- District courts are in charge: appellate court may leave the final decision to abstain to the district courts as a prudential matter

#### Colorado River Water Conservation District v. United States:

- Dispute over water rights; US govt got involved because involved NA tribes
- Federal court had statutory jx
  - Section 1345: federal courts have jx over suits brought by/involving jx
  - McCarren amendment didn't take away jx, rather waived fed sov immunity for these cases. But court says the amendment suggests we want water rights concerns to be adjudicated in single proceeding
- But they make up new abstention doctrine and dismiss the case
- They make up 5 factor test, see above

#### Rooker-Feldman Doctrine:

- **Rule: Only SCOTUS can review state court decisions, and it has to be done on direct appeal.**
  - This is an interpretation of the statute that gives SCT power to exercise app jx over state courts (28 USC § 1257)
- Applies when plaintiff lost in state court and is inviting the district court to review the state court judgment
  - Can't go to federal district court and file new suit to challenge state court decision. Statute only allows SCOTUS to review state court decisions, not other courts.
  - If it seems like they're saying hey this state court decision was wrong, want to complain about it, going to federal district court and saying the state court judgment itself harmed me → that will be barred. But it's no more than that
- Very limited: in a lot of contexts, RF does not apply; confined to its facts
- **Concurrent jx is ok (SABIC)**
  - You can have cases going on in both, different judgments, and then preclusion doctrines tell us what to do

#### Rooker v. Fidelity Trust Co.

- Rooker, plaintiff, lost his suit against Fidelity in state court and the state supreme court affirmed.
- Rooker sought review by the federal district court, arguing that the *state court judgment violated the federal Constitution*.

- Plaintiff can't bring suit in federal district court to challenge constitutionality of state court decision; can only appeal to SCOTUS on direct appeal

#### District of Columbia Court of Appeals v. Feldman

- plaintiffs there had been refused admission to the District of Columbia bar by the District of Columbia Court of Appeals, and sought review of these decisions in federal district court.
- SCOTUS decision held that to the extent plaintiffs challenged the Court of Appeals decisions themselves—as opposed to the bar admission rules promulgated nonjudicially by the Court of Appeals—their sole avenue of review was with SCOTUS.
- So like if you have to go to SCOTUS to get review, can't try to get review by filing a case in district court

#### Exxon Mobil Corp. v. Saudi Basic Industries Corp. (SABIC)

- SABIC sued in STATE court seeking declaratory judgment re: royalty charges
- Exxon counterclaimed in state court and also sued SABIC in *federal* court arguing same thing as counterclaim
- State court proceeding moved faster, final judgment was entered → did federal court still have jx over its case?
- **You can have concurrent proceedings in state and fed court.**
- **When there is parallel state and federal litigation, Rooker-Feldman is not triggered simply by the entry of judgment in state court.**
- Exxon filed the federal case *before* the state court decision was entered → RF didn't apply
- Preclusion rules will handle any conflicting judgments

**PART II: SUBSTANTIVE CLAIMS AND DEFENSES****A. State Sovereign Immunity****Sovereign Immunity Generally:**

- Sovereign immunity means that the state has complete immunity from suit, cannot be sued, regardless of the relief sought
- Comes from Great Britain, idea that king can do no wrong → can't sue the king
- Both federal and state govts have sovereign immunity
- But NOT localities
- State can assert sovereign immunity at ANY POINT during the lawsuit, even on appeal (eg Edelman)

**Why do we have sovereign immunity?**

- Practical necessity/financial realities
  - Early in country's history: concerns about whether the govt was financially viable
  - A lot of people's property was seized during the war, didn't want people to bring suit bc concerned about the financial viability of the govt
- English Common Law
  - Lots of our common law came from England, it just got imported too
- International Law
  - Comes from intl law too
  - It is part of the dignity of sovereigns that they are immune from suit.
- Fed govt's sov imm is rarely questioned. Ppl just accepted it
- States wanted dignity too

**Waiver: why would a govt waive sov imm?**

- Reasons that apply to both federal and state govts:
  - Politics
    - some are happy to assert sov imm, but politically it looks bad
  - Economics: pure business reasons
    - Contracts: Boeing doesn't want to contract with govt if it can't sue the govt if it breaches its contract. Companies won't want to contract with govt.
- Federal govt only:
  - Congress might waive it to constrain the exec
- Most of the action on this issue is in statutory interpretation
- **Presumption is that waivers of sov imm are to be narrowly construed**

Eleventh Amendment:

- The Judicial power of the United States shall not be construed to extend to **any suit** in law or equity, commenced or prosecuted **against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State.**

Art. III section 2:

- lists all the cases to which judicial power extends:
  - All cases arising under federal constitution, federal law, treaties
  - Controversies involving US govt
  - Controversies between 2 or more states
  - **Controversies between state and citizens of another state**
    - *I.e., state of Georgia and citizen of South Carolina*
  - Controversies between citizens of different states
  - Controversies involving foreign states
  - + others

Chisholm v. Georgia:

- South Carolina plaintiff brought suit over contract dispute with state of GA
- Article III plainly says judicial power extends to controversies between state and citizens of another state
- GA refused to show up, claiming sovereign immunity
- Court held that GA could be sued despite claiming sovereign immunity
- Reaction to Chisholm:
  - People were scared this would mean that the states would go bankrupt from people suing them
  - As a result, the 11th amendment was passed

Different Interpretations of 11A:

- Literal/plain text interpretation: ✗
  - No out-of-state person or foreigner can sue a **state** for any reason
  - Everyone rejects this literal reading
- Diversity interpretation: ✗
  - 11A only applies to cases based on *diversity jurisdiction*; NOT FQJ
    - History: At time 11A was passed, FQJ was barely used; federal issues were litigated in state court; most of the lower federal courts' jurisdiction came from diversity jx; so they probably weren't thinking about FQJ
    - Text: And plain text of Art III says that judicial power extends to cases arising under federal law → FQJ; 11th is only repealing specific part of the language of Art III Sec. 2
  - Souter dissent in Seminole Tribe: advocating for this interpretation

- Quimbee: The Eleventh Amendment bars only citizen-state diversity jurisdiction (i.e., a suit between a state and a noncitizen of that state). It does not bar federal-question jurisdiction in cases in which the state is a party to the suit
- **Plain of Convention interpretation:** 
  - **Bars any suit by any private plaintiff against the state (unless abrogated/state consents, etc)**
    - Note that NA tribes are treated as private plaintiffs, not sovereigns, for this rule
  - This is the interpretation adopted in **Seminole Tribe**
  - Essentially construing 11A to impart broader sovereign immunity than the text of the 11A actually supports
    - Does Rehnquist purport to get any of this from the text of the const? No! They don't care what it actually says. They say the text is a straw man. No text of the const has been obliterated like the 11A by the so-called textualists (Scalia and Thomas signed on to this)
  - History:
    - When constitution was written and ratified, states were immune;
    - There was background understanding that the states would retain sovereign immunity
  - So the 11A only trying to overrule Chisholm, which was wrongly decided, to re-confer immunity that already existed
    - Counterarg – 11th adds foreigners, going beyond Chisholm
    - And if background understanding so clearly existed, how'd Chisholm come out so wrong?
  - Congress can't abrogate unless clear statement & valid Sec 5 14th power (**Seminole Tribe**)

Seminole Tribe of Florida v. Florida:

- Dispute between NA tribe and state of Florida over negotiations about gaming activities
- This is a fight over how to interpret the 11A
  - Rehnquist adopts Plan of Convention view (see above)
- **ABROGATION** question: has Congress abrogated the states' sovereign immunity?
  - **1. Is there a clear statement that Congress wants the state to be subject to suit?**
    - Did Congress unequivocally express its intent to abrogate?
  - **2. Is it a valid exercise of Congress's power?**
    - **Exercise of Commerce Clause power CANNOT be basis for abrogation** (overrules Union Gas on this point)
    - **But 14A section 5 enforcement power could be basis for abrogation**



- Commerce Clause comes from Art I, and can't use Art I to expand Art III in violation of 11A; but 14A is different
- Also, federal govt can sue the state (states consented to this when joined union)

### Ways Around Sovereign Immunity:

#### For private plaintiffs:

- **Waiver/Consent:**
  - States can waive their own sovereign immunity on specific issues
- **Abrogation TEST:** Congress can abrogate state sov imm using its enforcement power under section 5 of the 14A (Seminole Tribe)
  - How to determine whether that abrogation is valid:
    - **1. Needs to be clear statement in statute's text expressing intent to abrogate sov imm and**
    - **2. Needs to be valid exercise of 14A sec 5 power → C and P test**
  - **TEST** for exercise of that power: (**Boerne**)
    - **Congruence and proportionality test:** there has to be C and P between the injury that congress is trying to stamp out (injury = violating individual rights) and the means congress using (means = abrogating state sov imm)
    - Congress must "identify a pattern of constitutional violations and tailor a remedy congruent and proportional to the documented violations." (*Coleman v. Court of Appeals of Maryland*)
    - **Step-by-Step Analysis:**
      - **Step 1:** Identify the "injury" (constitutional violation)
        - What behavior/actions is Congress trying to stamp out?
      - **Step 2:** Determine standard of scrutiny
      - **Step 3:** Look at evidence based on the standard of scrutiny
        - **If heightened scrutiny: can look at evidence from states, localities, private parties (Hibbs)**
        - If rational basis:
          - Evidence re: localities and private parties irrelevant (Garrett)
          - Need pattern of unconstitutional conduct by states → pattern of irrational conduct by states if RB would apply (Garrett) (unclear if needs to be all the states or just one state (might run into *equal sovereignty* issue))
      - **Step 4:** Is there sufficient evidence to support abrogation?
- **Induced Consent:**
  - Congress can induce states to consent to suit through spending power – see notes under Induced Consent

- Note: NO constructive waiver (College Savings Bank)
- **EXPY**: Bring suits against state officers instead of state itself
  - More on this later
- Note NA tribes are considered private plaintiffs under this rule

Govt plaintiffs:

- Fed govt can sue a state (**Seminole Tribe**)
- States can sue states → SCT has original jurisdiction

Abrogation Cases:City of Boerne v. Flores:

- Until Boerne, 1997 - Congress had really broad power under section 5 of 14A
  - Cong typically used section 5 to enforce section 1 of the 14A against states:
    - Citizenship; due process; EP
  - Section 5 was treated like the NP clause; Court deferred to Congress until City of Boerne v Flores
- Test from Boerne for whether enforcement under section 5 is valid: congruent and proportional
  - **There must be congruence and proportionality between the injury that Congress is trying to prevent or remedy and the means adopted to that end**
- The most important impact of Boerne is in the state sov immunity context
  - When congress is exercising its section 5 power under 14A - what is it trying to remedy? Injuries caused by state violations of individual rights.
  - What is the means for doing this: Congress needs to abrogate state sov imm
  - That's the entire means for this class
- **Injury = state violations of individual const rights protected by DP and EP clauses**
- **Means = abrogate state sov imm**

Florida Prepaid:

- **Abrogation invalid** → SCOTUS upheld sovereign immunity 
- Bank claiming that FL state agency committed **patent infringement**
  - Court seems to treat patent rights like any other economic rights → seems to apply RB
  - states can infringe on patents as long as they provide some sort of state process and that's ok
- Congress had expressly abrogated sovereign immunity in the Patent Remedy Act, BUT it had no power to do so → not a valid exercise of 14A sec 5
- **Evidence:**
  - In enacting the Patent Remedy Act, however, Congress identified no pattern of patent infringement by the states, let alone a pattern of constitutional violation

- No legis intent arguments that they saw this as a 14A issue
- Not a DP issue bc there are other remedies available

Kimel v. Florida Board of Regents:

- **Abrogation invalid** → SCOTUS upheld sovereign immunity 🗽
- Congress trying to prevent **age discrimination**
- Court: Congress could not constitutionally authorize damage actions against states for violation of the Age Discrimination in Employment Act (ADEA).
- Age discrimination is likely not going to be constitutional violation unless irrational since age classifications get RB
- So ADEA is not about enforcing 14A
- Don't have enough evidence

Board of Trustees of the University of Alabama v. Garrett:

- **Abrogation invalid** → SCOTUS upheld sovereign immunity once again 🗽
- Employees suing state of AL for failure to abide by ADA
- Congress trying to prevent **disability discrimination**
- Again, disability is not protected by 14A, it gets RB
  - States are not required by the Fourteenth Amendment to make special accommodations for the disabled, so long as their actions towards such individuals are rational

Evidence:

- Plaintiffs argued there was a lot of evidence that the local govt was discriminating on the basis of disability, but the evidence of discrimination by local govts was irrelevant because 11A protects states, not local govts (remember local govts do not get state sov imm)
- Evidence of discrimination by private parties is irrelevant too
- **Congress has to show that states are engaging in a PATTERN OF IRRATIONAL CONDUCT to show that they are violating the constitution when the standard of review is RB**

Breyer Dissent:

- There was irrational conduct:
  - Govt agencies in one state discriminated against ppl with cancer bc they thought cancer was contagious
  - State-run zoo thought children with downs syndrome would upset the chimpanzees
  - But maj would say (or did say?) this isn't a *pattern* of irrational conduct

Dept of HHR v. Hibbs:

- **Abrogation valid** → we're going to court 🗑️

- Family and Medical Leave Act: entitles certain employees to take up to 12 weeks unpaid leave. Can take leave for:
  - a) birth of child: your child was just born
  - b) adopting/fostering child: you just adopted a child
  - c) child/spouse/etc someone in family sick you need to care for → leave
  - d) employee's own serious health condition
- Hibbs was about subsection c; **Hibbs said that Congress *could* abrogate sov imm for violations of subsection c**
- Why?
  - Different from other cases: Congress was trying to get rid of sex discrimination
  - Congress found a **pattern of conduct discriminating by women against states**
- Evidence:
  - Here: Evidence of what localities and private parties do is ok to pay attention to

#### Tennessee v. Lane:

- **Abrogation valid** → we're going to court 
- Disability case: paraplegic had to crawl up steps to courtroom
- Distinguished from Garrett:
  - This case involved due process issues of access to court and 6A Confrontation clause → need more searching standard of review, not RB
  - The part of ADA seeking to prevent this is more closely related to an underlying constitutional violation
  - Evidence: Congress made finding about public services specifically, and discrimination preventing people with disabilities from accessing public services
  - So it was appropriate for Congress to use its 14A sec 5 enforcement power to address this

#### Coleman v. Court of Appeals of Maryland:

- **Abrogation invalid** → SCOTUS upheld sovereign immunity once again 
- Family and Medical Leave Act again, but this time it's about provision saying that person can take leave to care for themselves if they're sick (self-care provision. subpart d)
- Looking at intent: what is the statute trying to stop? What is the overall purpose of the statutory scheme? If it's not about sex/gender discrim, what is it about? Just illness → disability ("short term disability")
- Ginsburg Dissent: this is just like Hibbs, we treat all the provisions of the statute together, Congress had same motivations

Chart: Abrogation

| Standard of Scrutiny                                                                                                                                                                                                                                                                          | Abrogation OK                                                                                                                                                                                                                                                                                     | Abrogation NOT OK                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Rational Basis</b></p> <p>Includes age, disability, economic/property rights, pregnancy (which is not sex), pretty much everything else</p>                                                                                                                                             |                                                                                                                                                                                                                                                                                                   | <p><i>Florida Prepaid</i> (1999): Patent needs “pattern” of irrational acts</p> <p><i>Kimel</i> (2000): ADEA; Evidence of private discrimination is irrelevant</p> <p><i>Garrett</i> (2001): ADA; Evidence of local governments’ activities and private parties’ activities is irrelevant</p> <p><i>Coleman</i> (2012): FMCA self-care clause** (only about disability, not gender); needs to show a pattern of irrational discrimination by the states (a broad pattern of states in general is probably sufficient, even if not the specific state at issue → but the state would/should probably still argue that sovereign immunity was <i>only</i> abrogated in the states in which there was a pattern; the Supreme Court isn’t fully clear on this issue)</p> |
| <p><b>Heightened Scrutiny*</b></p> <p>EPC includes race, gender, religion</p> <p>DPC includes all fundamental rights (“liberty interests”) such as marriage, parental rights, privacy, and all rights explicitly enumerated in the Bill of Rights via incorporation of the 14th Amendment</p> | <p><i>Hibbs</i> (2003): FMCA; Private evidence is now relevant</p> <p><i>Tennessee v. Lane</i> (2006): ADA; Evidence of local governments’ activities are now relevant</p> <p>*Note: The Court does NOT necessarily imply that a <i>pattern</i> is necessary when heightened scrutiny applies</p> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

- \*Note: “Heightened Scrutiny” includes intermediate scrutiny *and* strict scrutiny, but for the purposes of Fed. Courts, this distinction isn’t super important

- **\*\*Note:** In *Coleman*, the plurality treated the statute on a clause-by-clause basis, while the dissent treated it as one large statute. For the purposes of the final exam, be prepared to argue both

### **State Sovereign Immunity in State Court:**

- States generally must comply with federal law (Supremacy Clause)
- States also have an obligation to enforce federal law (also Supremacy Clause, *Testa v. Katt*)
  - Although if it's like a small claims court/court of limited jx, maybe not - only have to hear the federal cases if it would hear similar cases under state law
- What happens after *Seminole Tribe* if Congress expressly abolishes sovereign immunity in *state* courts over a cause of action to enforce federal law? → *Alden v. Maine*

### **Alden v. Maine:**

- Maine probation officers sued Maine for violations of the Fair Labor Standards Act
- **States retain their immunity from suit in state courts**
- In other words: States are entitled to sovereign immunity *even in state courts*
- How?
  - Text? 11A says nothing about state courts
  - History? Kennedy says the founders were silent on this issue
  - Affirmed Plan of Convention Theory: it was so well understood that states would retain sov imm in state court that no one even felt the need to mention it
    - (Except for the *Chisholm* justices...)
- What would be the problem if states are NOT immune in state courts?
  - Worried about states' treasuries
  - Worried about state political process - this will interfere with people's ability to set the balance for spending though political process
  - Kennedy says the states will always follow the law, we don't need to worry or assume they'll break the law, we can trust the states to do the right thing, which makes sov imm less of an issue
  - Fed govt can still sue states
- **Souter Dissent:**
  - Maine has created state courts of general jurisdiction; once it has done so, the Supremacy Clause of the Constitution, which requires state courts to enforce federal law and state-court judges to be bound by it, requires the Maine courts to entertain this federal cause of action
  - What about the enforcement of individual rights? On the other hand, don't want state to go bankrupt

**Constructive Waiver:**

- Previous rule:
  - if a state engages in an activity regulated by federal law, and the federal statute says state can be sued for this, then the state is waiving its sovereign immunity and opening itself up to suit by engaging in that activity (Parden)
  - Usually applied to areas of voluntary, non-essential activity v traditional state functions
  - But this is NO LONGER THE RULE
- **NOW: Constructive waiver is NOT allowed (College Savings Bank)**
- Why should we allow constructive waiver?
  - When a state is engaging in conduct that a private company/party might also engage in, sovereign immunity gives an advantage to a public company v a private enterprise - harder to compete with state govt if you can be sued but state can't

**College Savings Bank:**

- *College Savings Bank* → your suit can't be *saved* by *banking* on constructive waiver!
- Sov imm was not traditionally limited by the fact of whether the activity was voluntary/for-profit
- Parden explicitly overruled
- "The text of 11A makes no distinction between commercial and non-commercial state activities"
  - So now we care about the text of the 11A? After obliterating it year after year?
- Why else do they not want to allow constructive waiver?
  - Constructive waiver would be an end-run around state sov imm - would allow congress to impose constructive waiver for everything, giving congress too much power
  - Needed to clean this up to make Seminole Tribe matter

**Induced Consent:**

- Congress can get the states to consent to suit through the spending power
- But it has to be a valid exercise of the spending power
- **Spending Power Test (DOLE):**
  - (1) **general welfare:**
    - the federal expenditures must benefit the general welfare;
    - [Usually not an important prong]
  - (2) **unambiguous:**
    - the conditions imposed must be unambiguous (in context of state sov imm, the statute must be *extremely* clear, as it must **expressly and unequivocally** provide that states are subject to suit (Sossamon));

- Arguments:
  - Does the statute waive sov imm in that forum (state v. fed court) specifically?
  - Does it specify the particular form of relief available, or does it just say the “appropriate relief” like in Sossamon?
  - Counter: Seminole tribe says that sov imm is imm from suit for any kind of relief, not just damages
- (3) **nexus:**
  - the conditions must be reasonably related to the purpose of the expenditure (nexus); and
  - Arguments:
    - More generalized purpose → more likely to have nexus: ex: in problem, it’s all about employment/labor. Or could distinguish between employed people v. unemployed people to argue nexus isn’t met
- (4) **the conditions may not violate an independent constitutional guarantee/individual rights**
  - [not an important prong for our class]
- (5) **can’t be unduly coercive**
  - 10% of state budget can be coercive (NFIB)

Sossamon v. Texas:

- Act re: religious exercise in prisons was passed pursuant to Congress’s spending power (only applied to state programs that accepted federal funding)
- Statute at issue in Sossamon said anybody can sue and can get “appropriate relief against a government”
- Did the phrase “appropriate relief against a govt” make it clear that the states had to waive their sov imm to get the money? SCT said NO
- Congress must **expressly and unequivocally provide that states are subject to suit for monetary damages, not just “appropriate relief”**



**B. Suing State and Federal Officers****Chart: How to Sue Govt or Official**

| Suit against:                                                                           | injunctive/declaratory relief?                                                                                                  | Damages?                                                                                                                                                                                                                  | Defenses                                                                          |
|-----------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| <b>Fed govt itself</b>                                                                  | Sue the fed official in official capacity (US v Lee)<br><br>Waiver of sovereign immunity (usually through APA)<br><br>NO BIVENS | Waiver only!                                                                                                                                                                                                              | <b>Sovereign immunity</b>                                                         |
| <b>Fed official PERSONAL capacity</b>                                                   | N/A - useless (injunction would only apply while that person in office)                                                         | <b>Bivens</b><br>(can ONLY get damages through Bivens, no injunctive/declaratory relief)                                                                                                                                  | <b>Official immunity!</b><br>(qualified or absolute)                              |
| <b>State govt itself</b>                                                                | Can't sue state directly, but can use EXPY (below)<br><br>OR waiver                                                             | <b>Abrogation</b> by Congress under section 5 of the 14A → damages<br><br>OR Waiver<br><br>But NO constructive waiver (College Savings Bank)<br><br><b>Induced Consent</b> through Congress spending power<br><br>NO EXPY | <b>Sovereign immunity</b>                                                         |
| <b>State official in OFFICIAL capacity</b>                                              | <b>EXPY</b><br>Sue state official in official capacity → like suit against state (for inj/declaratory relief ONLY)              | <b>Section 1983</b> : provides COA; can get damages or injunctive relief (but sovereign immunity might be issue! <b>Abrogation</b> ?)                                                                                     | For damages: <b>Sovereign immunity</b><br>For injunctive relief: <i>Edelman</i>   |
| <b>State official PERSONAL capacity</b>                                                 | N/A - useless (injunction would only apply while that person in office)                                                         | <b>Section 1983</b> : provides COA; can get damages or injunctive relief                                                                                                                                                  | <b>Official immunity!</b><br>(qualified or absolute)                              |
| <b>Locality</b><br>(or local official in official capacity → suit against the locality) | <b>Section 1983</b> for both injunctive relief and damages                                                                      |                                                                                                                                                                                                                           | <b>Monell</b> (Can't get punitive damages)<br><br>[no sov. immunity for locality] |
| <b>Local official PERSONAL capacity</b>                                                 | N/A - useless (injunction would only apply while that person in office)                                                         | <b>Section 1983</b>                                                                                                                                                                                                       | <b>Official immunity!</b><br>(qualified or absolute)                              |

### 1. EXPY: Suing State Officials:

*Don't think of EXPY as a COA, but rather as a way around sov imm. You will use 1983 or state law COA. Also, EXPY is only for federal law/const violations.*

Ex Parte Young:

**\*\*RULE: you can sue a state official in the state official's official capacity for injunctive or declaratory relief (NOT damages - think about Edelman and Milliken)**

Facts:

- Minnesota enacted legislation to lower railroad rates
  - Each ticket sold was one violation → 5 years prison or 5k fine
  - Ticket seller would be the one going to jail
  - Obvi ticket sellers will refuse to violate the law bc penalties are so harsh → with no violation → no prosecution → no opportunity to say this law is unconstitutional
- RR company's shareholders brought suit in fed court to challenge the rates under 14A
- Fed court issued prelim injunction prohibiting AG from enforcing the law
  - Might seem weird under Younger abstention, but there was no pending state prosecution so it was fine; plaintiffs were like preemptively challenging the law
- Young = MN AG; Young nevertheless tried to enforce new rates in STATE court and was adjudged in contempt of the federal court (bc violated injunction).
- Young applies for habeas and cert writs; thought he would win because of state sovereign immunity. He's the state, can't sue him
- But NO! Court says he can be sued; Young is like 😬

Holding 1:

- SCOTUS said that the statute limiting RR ticket prices was unconstitutional before even deciding if suit can go forward

Paradox:

- If AG is just a private citizen, can't violate the US Constitution because const only applies to fed govt/states
  - Even if it did apply, this wouldn't help because injunction would only apply to Young; other state officials or next AG could still enforce it
- SO the RR shareholders sued him in his OFFICIAL CAPACITY
  - So then it's like a suit against the state. Injunction would apply to anyone in that office
  - BUT if it's a suit against the state → sovereign immunity!
  - So he's the state for purposes of obtaining relief against the state, but he's NOT the state for the purposes of 11A/sovereign immunity. ~how funky~

Effects of EXPY:

- EXPY = a truck driven thru state sov imm
- EXPY was despised by populists and progressives of the era bc Peckham wrote it - he's famous for writing 1905 Lochner - this was part of the Lochner era - this is going to be way that corps stop states from protecting the people. Vehicle for enforcing the Lochner era and rights of big business.
- Law of unintended consequences - even tho progressives hated Ex Parte Young, this is now one of the biggest ways to stop states from violating civil rights, both constitutional rights and federal statutory rights

State Efforts to Evade Ex parte Young:Whole Woman's Health v. Jackson:

- Can a state enact a scheme that circumvents the EXPY framework?
- About SB 8: any PRIVATE plaintiff can sue any provider or helper for 10k and can sue over and over again; only private enforcement → way of getting around EXPY
- The goal was to make it impossible to do anything but comply with the law → no violations, so it would never come up in court
- And can't really preemptively sue a private party that would potentially enforce the law bc wouldn't have standing
- Court decided to apply EXPY but not expand it to make it harder to circumvent
  - They applied it - still can only sue state officials → have to find state officials who can enforce this law and sue them
  - Court did find some categories - state licensing officials and clerks
- Sotomayor Dissent:
  - What if the state just does a better job of eliminating any enforcement by state officials next time, so that there are no state officials to sue under EXPY to challenge the law?

Injunctive Relief v. Damages:

- Remember: under EXPY, can sue state official in official capacity for injunctive or declaratory relief (prospective, forward-looking relief) but NOT damages (retrospective relief)
  - Monetary award from the state treasury = damages, cannot get damages disguised as equitable relief (Edelman)
  - But if it's injunctive relief with an ancillary/indirect effect on the state treasury, that's ok (Edelman)
  - Could argue this is just dicta from Edelman though
- If relief is "compensatory in nature" but part of a forward-looking plan, that's ok, just an ancillary effect (Milliken)

- Can think of the difference as:
  - **Ordering state to pay out money directly → Not ok/available under EXPY**
  - **Ordering state to do something that will end up costing money → ok under EXPY**
- Note you can argue that an injunction is **retroactive** if about correcting a past wrong, so shouldn't be available, even if clearly an injunction (expungement of final performance review example from problem)
  - Play up the difference between it being forward- or past- looking

Edelman v. Jordan (1974):

- Jordan brought class action to challenge practices of certain IL officials in administering federal-state programs under the Aid to the Aged, Blind, or Disabled Act
- Fed District Ct injunction:
  - enjoined any future violations and *ordered the state officials to refund all wrongfully withheld past benefits (backpay!)*
- Differentiating EXPY and this case:
  - Ex parte Young was about prospective relief - Young was enjoined to conform his future conduct in that office to the 14A - but this is about paying a lot of money that should have been paid out already → damages
- Appellate court described this retroactive monetary relief as “equitable restitution,” but SCOTUS doesn't buy that - it's damages
- SCOTUS: sometimes the equitable relief may affect the state's finances, **but ancillary effects are ok: it's indirect, not a direct effect**
- But this is not equitable relief, just damages in disguise

Milliken v. Bradley (II) (1977)

- Court upheld a school desegregation order requiring the expenditure of state (as well as local) funds for educational components of the desegregation decree, including remedial reading programs
- Court rejected the state's 11A objection
- The order fits within the prospective-compliance exception from Ex parte Young reaffirmed by Edelman
- The educational components, which the District Court ordered into effect prospectively, are plainly designed to wipe out continuing conditions of inequality produced by the inherently unequal dual school system long maintained by Detroit.
- That the programs are also *compensatory in nature* does not change the fact that they are *part of a plan that operates prospectively* to bring about the delayed benefits of a unitary school system
- (You could argue this is all about punishing states for having segregated school system, not actually prospective relief)

## 2. 42 USC § 1983

### Background on § 1983:

- It was enacted in 1871 in the wake of Reconstruction as part of Civil Rights Act of 1871, goal was to protect new rights
- Ignored for about 90 years; in the first 50 years of its existence, there were only 21 cases
- Slaughterhouse Cases obliterated the privileges and immunities clause; the same language was used in § 1983 so everyone thought it meant the same thing
- But *Monroe v. Pape* changed everything

### Text of § 1983:

- Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress
- **Distilled: a person who acts under color of state law (or state customs/norms) to deprive someone of their (federal) constitutional/statutory rights, privileges, or immunities can be sued for damages, equitable relief, etc**

### Monroe v. Pape:

#### Facts:

- Really bad civil rights violations
  - Chicago police officers broke into petitioners' home in the early morning, routed them from bed, made them stand naked in the living room, and ransacked every room, emptying drawers and ripping mattress covers
  - Monroe was detained on "open" charges for 10 hours, while he was interrogated about a two-day-old murder
  - not permitted to call his family or attorney
- Monroe brought suit under 1983 claiming 4A violation → can he do this? → what does **under color of state law** mean?

#### Douglas Majority:

- Under color of state law → using one's authority under the state to do something that you might not be able to do otherwise; to inflict a harm that one would not have been able to inflict but for the person's authority
- *Grove*: there's a difference between a police officer breaking down your door versus a "hoodlum" doing that
- **When state govt officials use their power to violate your federal constitutional or statutory rights → you can sue in fed court**

Frankfurter Dissent:

- Plaintiff must fully exhaust his state law remedies first, go sue in state court
- Should not be suing for federal constitutional violation; what the officers did was not allowed under IL state law → sue under state law
- Historical context: wanted state judiciary systems to act and protect people's civil rights; they were doing nothing about ppl being killed by KKK, etc
- Need to go to state court first and show that the state courts are against you too to establish the deprivation under color of state law
- Majority says this isn't necessary

**Who can be sued under 1983:** (who counts as a person who acts under color of state law, and therefore can be sued?)

**YES, you CAN sue:**

- State officials ✓
- Local officials ✓
- Localities ✓

**For officials, can bring either:**

- Official capacity suit - against office
- Personal capacity suit - against individual
  - Personal official will often be indemnified by the govt (won't have to pay damages out of their own pocket)

**No, you CANNOT sue:**

- NOT fed officials ✗
  - A federal official would not be a person acting under color of state law
- NOT the state itself ✗
  - The state is not a person acting under color of state law
  - This is a matter of statutory interpretation; builds on state sov imm principles
  - But you can sue the state official in their official capacity, which is like a suit against the state

**When can you sue to enforce federal statutory rights?**

- *Don't do this test if suing for const violation under 1983*
- If plaintiff suing to enforce **federal statutory rights?** → Gonzaga v. Doe test

**Gonzaga TEST:**

- Gloss: Talevski says this is a demanding, high bar, stringent standard, hard to meet (but in that case, the statute did meet it)
- **1. Has Congress conferred a private right through the statute?**
  - Court focuses on **rights-creating language**
    - Statute needs to have some language talking about **individual rights**: **no person shall** be subjected to etc (**Talevski**)

- Or does it have an **aggregate focus**: focused on the policies and practices of the institution rather than the individual harm (like FERPA in **Gonzaga**)
- **2. Does 1983 provide a remedy?**
  - **Presumption**: presumption is there is a 1983 remedy; right is presumptively enforceable (**Talevski**)
  - Can rebut the presumption if there is a separate private remedy available (**Palos Verdes**)
    - But it has to be remedy available to the plaintiff
  - Also: Think: is there any evidence that Congress intended to preclude private enforcement?

#### Gonzaga University v. Doe:

- Doe alleged that Gonzaga University violated FERPA by revealing allegations of sexual misconduct by an employee to state officials involved in teacher certification
- Court comes up with test, see above
- Says FERPA has an aggregate focus → Congress has not conferred a private right through the statute

#### What is the court doing?

- Court is trying to cut back on enforcement under 1983 while preserving previous decisions; trying to reconcile this doctrine with past precedent about implied private rights of action
  - “the initial inquiry—determining whether a statute confers any right at all—is no different from the initial inquiry in an implied right of action case” → need to determine whether or not a statute “confers rights on a particular class of persons.”
  - Where the text and structure of a statute provide *no indication that Congress intends to create new individual rights*, there is no basis for a private suit, whether under § 1983 or under an implied right of action.

#### Health and Hospital Corp. v. Talevski:

- Plaintiff sought to enforce the Federal Nursing Home Reform Act which prohibits nursing homes from using unnecessary physical or chemical restraints and also requires following certain procedures before transferring or discharging residents
- Q: Did the Federal Nursing Home Reform Act in fact create statutory rights enforceable under § 1983? [YES]
- Spending clause statute - even spending clause statutes can be enforceable under 1983
- First: statute creates sufficient rights-creating language
  - The statute talks about the right to be free from restraints, talks about residents, focus on individual rights
- Second: no indication that Congress intended to preclude § 1983 enforcement

- does not require plaintiffs to comply with specific procedures or exhaust certain remedies before filing suit.
- **Congress didn't make any other remedy that would be in tension with Section 1983 lawsuits**
- the Act provides that its remedial provisions are "in addition to those otherwise available under State or Federal law and shall not be construed as limiting such other remedies."
- Talevski says its really hard to satisfy this test, although in that case they did

City of Palos Verdes v. Abrams:

- Plaintiff was denied a zoning permit to install a radio antenna on his property → claimed that the denial violated the Telecommunications Act of 1996
- City conceded that the statute conferred a private right → presumption that 1983 provides a remedy
- **BUT the presumption was overcome** because if Congress created a different statutory enforcement scheme → Court infers that there was a lack of congressional intent for individuals to be able to privately enforce it

Monell:

- **Rule:** localities can be liable for local official's acts if the locality has a policy or custom of violating federal rights (Monell)

Possible Policies or Customs of Localities:

- **Ordinance**
  - no question that this counts as a policy or custom; no Monell analysis needed
- **Agency regulation at the state level (Monell)**
  - clearly a policy of the city
  - This was the case in Monell
- **Something done by individual with policy-making authority (Pembaur)**
  - Can be single decision not made ahead of time
- **Failure to train w/ deliberate indifference (Canton)**
  - Needs to be clear to locality there was a problem; one instance isn't enough (**Canton, Tuttle, Connick**)
  - Can try to argue that it was just one rogue official rather than a policy or custom of ignoring constitutional violations
  - If municipality is aware of the issue, that's not enough; need to show deliberate indifference
  - *One problem, one time → no policy or custom*



## EASY cases

## HARD cases

Ordinance; state  
regulation imposed  
on city level  
(Monell)

Decision by someone  
with policy-making  
authority; single  
instance is enough  
(Pembaur)

Failure to train and deliberate  
indifference; single instance not  
enough, need a pattern + deliberate  
indifference to that particular  
issue/constitutional violation  
(Canton, Tuttle, Connick)

Monell v. Department of Social Services:

- Plaintiffs sued NYC Board of Education re: leave for pregnant employees
- Monroe v. Pape had held that a locality could not be sued under 1983, but Monell overrules that
- Stare decisis analysis:
  - Inconsistently applied: they had let plaintiffs sue localities before (namely school boards re discrimination)
  - Reliance? Localities shouldn't be relying on Monroe to adopt unconstitutional policies
  - Just wrongly decided: incorrectly interpreted legislative history of Sherman Amendment
- Rule: localities can be liable for local official's acts if the locality has a policy or custom of violating federal rights

Pembaur v. City of Cincinnati 

- doctor was suspected of welfare fraud; police show up to arrest witnesses; can't get in
- Head Sheriff says call the ADA; the prosecutor says go in and get the witnesses, so they chopped down the door with an axe
- Court looked at Ohio law; the code specified that the prosecutor had the final authority and responsibility to decide whether the deputies searched Pembaur's office for the witnesses.
- **Something done by individual with policy-making authority → policy or custom**
- **No requirement that the person makes this decision ahead of time**
- If it's a high enough official → can speak for the county **in a single instance** and that counts as official policy or custom; the City's liability may be based on this one decision

**Failure to Train:**City of Canton v. Harris 

- Woman in the police station, slumped over once onto floor, officer came and put her back in chair, when she fell down again, they just left her on the floor and ignored her, had mental health issues and needed treatment → she sued the city
- Did they have a practice or policy of leaving ppl on the floor? No
- Ps say theres a diff way to meet the req
- What should the city do when its officers oversee others? Give them training/guidance esp if police officers, not med professionals
- **Failure to train → can be liable**
- **Standard: Needs to be deliberate indifference**
  - Had to be clear that there was problem and therefore needed to institute a training policy
- Court doesn't actually decide this in Canton; remands it

### Oklahoma City v. Tuttle 🗡️

- Rookie PO shot Tuttle for no reason (fake robbery call, toy gun)
- Failure to train claim failed
- It was just a single incident, not enough to prove/suggest that the city messed up writ large

### Connick v. Thompson 🩸

- Thompson wrongfully convicted of murder
- After someone went back and tested the blood evidence → didn't match Thompson's blood type → acquitted after 18 years in prison
- Prosecution hadn't turned over the evidence → sued under failure to train
- Court: There was no pattern of violations; can't assume based on single incident that there was a failure
- Just like in Tuttle, this was egregious but that's kinda the point - you don't expect it to happen! Locality couldn't be expected to have anticipated this problem
- DAs office did not have the best of reputations, but you need to have evidence for **that particular problem** and deliberate indifference to that particular violation

### 3. Suing Federal Officials:

#### United States v. Lee:

- Ex parte Young but for federal officials → **you can sue federal officials in their official capacity for injunctive or declaratory relief**
- (not as necessary as EXPY because US govt has waived sov in lots of areas, but Lee is a way around the federal government's sovereign immunity)

#### Facts:

- Civil War: Congress passed law saying if you don't pay your property taxes, US govt gets the property (and the taxes had to be paid in person on union side) → seized Robert E. Lee's family's property
- Lee's family sued the federal officials who did this; they claimed sov imm
- SCT allowed the suit and said property had to be given back
- People had already been buried there → US govt bought it from the Lee family for 150k
- Almost never have to worry about suing fed official in off cap for injunctive relief bc almost always will be waiver of fed sov imm (APA)
- The COA was state law (ejectment/trespass)

### **Bivens (Damages only):**

- Remember you can't bring a section 1983 claim against *federal* officials (they're not acting under color of *state* law)
- Bivens provides a COA against federal officials in their personal capacity for **damages** for constitutional violations
  - Can't get future-looking relief (injunction/declaratory relief) because will be too speculative, no standing (Lyons)
- **Davis and Carlson** extended the Bivens remedy
- BUT Bivens said that the case had no "special factors counseling hesitation in the absence of affirmative action by Congress"
- **Special factors** could be when congress provides an **alternative remedy** (**Bush, Schweiker, Hui**) or an **especially sensitive context**
- But special factors are not limited to military context:
  - Floodgates of litigation
  - Judicially manageable standards
  - Sensitive context: prison administration
- SCT: Bivens never works, answer is always no since 1981; but it still gets used in the lower federal courts!

### **Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics:**

- 6 agents came into Bivens' house, ransacked it, – sounds like *Monroe v Pape* - which is the case that woke up section 1983.
- Bivens: you can sue fed officials for violating constitutional rights (at least the 4th Amend)
- BEFORE Bivens:
  - You would sue under state tort law in state court, federal officers would remove the suit to fed court and then the fed officials will say we are fed officials, we can invade your home, it's authorized, and plaintiff will say you need a warrant, required by 4A, and battle it out
- But Brennan says this method is not enough; now can sue in fed court using Bivens

Black Dissent:

- Congress makes COAs, Congress confers jx, we don't confer jx on ourselves and we don't make COAs

Harlan's concurrence:

- It is appropriate for the Court to step in and provide a remedy when necessary to vindicate a constitutional violation (for **damages**)

Davis v. Passman:

- **Gender discrimination** claim against Congressman under **EP in 5A**
- Woman suing Congressman Passman because fired for being a woman; allowed under Bivens
- Congress had exempted itself from gender discrimination suits under Title 7, but Court said that doesn't apply to EP under 5A

Carlson v. Green:

- **8A** claim against BOP for death of an inmate owing to **lack of medical care**
- There was an alternative remedy available under the Federal Tort Claims Act but Court said that Congress has to not only provide the alternative remedy but also explicitly declare it to be a substitute for recovery/to displace Bivens, and it has to be equally effective

**Bivens Curtailed: Alternative Remedies**Bush v. Lucas:

- Employee claimed he was fired for voicing criticism of federal agency (1A claim)
- NO Bivens action
- Civil service system provided elaborate remedy; Bivens would get around all that
- There were differences between them, not equally effective, and there was no explicit statement from Congress displacing Bivens, but court didn't care, it was good enough, constitutionally adequate

Schweiker v. Chilicky:

- Social Security benefits were denied and then reinstated; and Congress reformed the statute to require that benefits continue to be distributed while decisions are being appealed
- Court said Congress has provided what it considers to be adequate remedies → there's no additional Bivens remedy

Hui v. Castaneda:

- Public Health Service officer failed to diagnose Castaneda's cancerous lesion (Castaneda was in immigration detention)
- Section 233(a) explicitly says FTCA is the only remedy available for a personal injury caused by a PHS officer
- Court: FTCA is the exclusive remedy; no additional Bivens remedy
  - FTCA did not allow for jury trial and punitive damages, but Bivens would; but still no dice

### Bivens Curtailed: Sensitive Contexts

#### Chappell v. Wallace:

- 5 navy officers tried to sue for racial discrimination
- **Sensitive Context:** Court didn't want to interfere with the **military** operations; disciplinary structure, etc
- (there would be alternative remedy too for racial discrimination claim, but Court didn't rest on that)

#### United States v. Stanley:

- **Military** secretly tested out LSD on Stanley; ruined his life
- No Bivens remedy is available for injuries that arise out of or are in the course of activity incident to (military) service; it's within the military's purview, so we won't get involved
- Doesn't matter if there was an alternative remedy

Chart: 1983 v. Bivens

|                                 | 1983                                                                                                                                                             | Bivens                                                                                                                                                                                                                                                                                |
|---------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Target                          | State officials<br>Local officials<br>localities                                                                                                                 | FED officials (can't sue state/local officials under Bivens)                                                                                                                                                                                                                          |
| Scope - what can you sue about? | Violations of:<br>US Constitution<br>Many statutes (not all bc of Gonzaga)<br>Maybe treaties (not 100% clear but possibly)<br><br>(1983 itself just says "laws") | Constitutional claims - but which ones?<br>That is continuing Q<br><br>You CAN sue for:<br>4A violations (Bivens)<br><br>EP component of 5A (maybe DP under 5A too) (Davis)<br><br>8A (Carlson)<br><br>That's it for SCOTUS - lower courts have allowed it for 1A and 5A more broadly |

|                              |                                                                                                                                                            |                                                            |
|------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|
|                              |                                                                                                                                                            | Bivens had a good decade and then things started to change |
| Remedies - what can you get? | Damages (incl. punitive damages)<br>Or can also get<br>Injunctive or declaratory relief                                                                    | Damages only<br>Could include punitive damages             |
| Overall                      | 1983 looks better: covers more provisions, covers the whole US const, better remedies, maybe Black was right - congress should have done this, not courts? |                                                            |

Older Bivens Test:

- 1. Has the court recognized this constitutional claim under Bivens?
  - Bivens - 4A
  - Davis - 5A (maybe just EP)
  - Carlson - 8A
- 2. Has Congress precluded Bivens in one of two ways:
  - Alternative remedy?
    - Carlson says the remedy must be explicitly stated as alternative that is displacing Bivens (needs to mention Bivens by name) AND has to be equally effective, so there needs to be jury trial and possibility for punitive damages
    - But courts haven't been following this; any remedy works (Bush civil service, Schweiker social security, Hui FTCA)
  - Special factors?
    - Military (Chappell, Stanley)
    - Could be others

**New Contexts:**Westfall Act:

- Before Bivens, people could sue federal officials under state tort law and the case would be removed to federal court, etc
- Westfall Act got rid of that, **so now the only way to sue a fed official directly in that person's personal capacity is Bivens**
  - Many ppl would rather sue the fed govt anyways bc it has more money but the FTCA has limitations; there could be reasons to prefer Bivens
- How did the Westfall Act get rid of state tort law claims?
  - It made FTCA the sole remedy; preempts state law claims
  - Can't sue govt official for state law violation

- Substitutes the fed govt for the defendant (and waived the fed govt's sovereign immunity)
- Westfall Act frees up fed officials from any concerns about state law claims

### Ziglar v. Abbasi

- Claims re: detention after 9/11
- Two groups of Ds: executive officials and wardens
  - Exec officials were AG, FBI Director, and INS Commissioner Ziglar
  - Wardens were responsibility for the operation of the detention facility
- Court modified the Bivens test by giving the first step a new name: new contexts: *did the claims arise in a new context not covered by prior SCT decisions? → is the case different in a meaningful way from previous Bivens cases?*

#### **Step 1: new contexts:**

- “A case can present a new context for Bivens purposes if it implicates a different constitutional right; if judicial precedents provide a less meaningful guide for official misconduct; or if there are potential special factors that were not considered in prior Bivens cases”
- Court: this case has new context for the all the defendants for all the reasons
- Diff const claim (DP, not 8A), not sufficient judicial guidance, different special factors (Prison Litigation Reform Act) → this is new context, different from Carlson

#### **Step 2: special factors (again):**

- So are there special factors that preclude the Bivens remedy?
  - Yes national security
- Why does national security matter?
  - Area of executive control - separation of powers
  - Court gets queasy about getting involved in national security issues
  - But it is kinda vague and ambiguous
- Kennedy also says there is *alternative remedy*
  - Habeas corpus
  - Grove: Bivens is so much better than habeas - and habeas only matters if still detained
  - Kennedy goes on to say habeas wouldn't work, but it's there, its an alternative remedy
  - Underscores how far we've come from Carlson

### **Modified Bivens Test - Ziglar**

- **1. New context that makes this case different in a meaningful, not trivial way?**
  - Need to be similar to Bivens, Davis, or Carlson
  - What makes it meaningfully different?
    - Rank of the officials:

- What was the rank of the person sued? If different, this matters
  - Might have thought this was decided by Iqbal but no apparently different
- If its a different constitutional claim
  - They both dealt with maltreatment but here talking about the 5th amend not the 8th amend because the people had not been convicted of a crime yet so were just detainees
- Insufficient judicial guidance
  - Case law not clear enough
  - But when is case law ever clear
- Congress's action or inaction on this issue
  - People knew about the controversial detainment policy but Congress didn't act to create a remedy
- Different special factors
  - Prison Litigation Reform Act had been passed since Carlson → can't rely on Carlson anymore
  - Weird bc then next part is whether there are special factors
- Different facts?
  - Maybe different factual scenario is enough
- **2. Special factors which now includes alt remedies**
  - Court says if this case seems to present new special factors, then the context is new, and then we get into what the special factors are
  - Kinda double counting SF
  - **National security (Ziglar) (Hernandez)**
  - **Foreign relations (Hernandez)**
  - **Military (Chappell, Stanley)**
  - **No workable test**
  - **Floodgates of litigation**
  - **Alternative remedies: Plaintiff can argue there is no alt remedy or it's insufficient, not equally effective (Carlson)**
    - Rebut with Bush, Schweiker, Hui - doesn't need to be as effective

**\*\*\*Note if it's a really close cousin of Bivens, Davis, or Carlson, then no new context → don't need to look at special factors. Bivens claim can go forward.**

#### Bivens -

- 4A
- Home broken into by federal officials, roughed him up. claimed excessive force, unreasonable entry. NYC

#### Davis -

- 5A EP claim against congressman for gender-based discrimination → firing



Carlson -

- 8A
- Suit against BOP official for failure to give medical attention - asthma

Hernandez v. Mesa 2020:

- NO Bivens
- US border patrol officer saw the kids running back and forth, running across culvert (ditch), yelled at them, then just as Hernandez got to other side, BP officer shot him
- Mexico tried to extradite him but US denied it
- CBP investigated it, said no issue
- Finally the parents brought Bivens claim
- Ginsberg dissent says - what would have happened if the kid had been on US side of border?
  - Fact of 5 yard difference shouldn't dictate what would happen
  - And if had been on US side of border it would have been allowed - and no one disputes this. And if on US soil, can't shoot unarmed, not dangerous kid
- 1. New context? Yes
  - This is cross border shooting, new situation
  - Kid died in Mexico, not US
  - Diff facts?
- Special factors:
  - National security (Ziglar) (Hernandez)
  - **Foreign relations (Hernandez)**
- They don't want to overturn Bivens, but chipping away at it

Thomas Concurrence:

- This whole regime is illegitimate. Just get rid of it. Congress can enact a Bivens if it wants to.

Egbert v. Boule:

- NO Bivens
- Border patrol agent assaulted Boule; patrol agent also told IRS to conduct audit of his taxes
- 1. New context?
  - Yes, border security
    - Mesa was over the border, Egbert was at the border → different.
    - And victim was US citizen, all on US side.
- 2. Special factors?
  - Border patrol has its own administrative process to pursue
  - And national security (Ziglar, Hernandez, Egbert)

#### 4. Official Immunity

##### Official Immunity Generally:

- It is immunity from suit
  - Similar to sovereign immunity but for the individual not state
  - Don't go through the lawsuit at all
- Most officials get QI, not AI
- **ANY GOVT OFFICIAL who MUST exercise discretion could argue for QI**
  - Includes public school administrators, etc
- BUT official can only get official immunity if sued in PERSONAL CAPACITY
- **Mitchell v. Forsyth**: orders denying QI is immediately appealable; don't have to wait for final district court judgment bc point of immunity is that the official is completely immune from suit.
  - Orders re: immunity happen at MTD stage
  - Facts seem really bad because defendant is not contesting them but rather saying even if all this is true, I still get AI/QI

**Chart: Official Immunity**

| Type of Official                                                                                         | Absolute Immunity?                                                                                                                                                                                  |                                                                                                | Qualified Immunity?                                                                                                                                                            |                                                                                                                                              |
|----------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------|
| Legislator (state and federal)                                                                           | Acting in legislative function → AI; interpreted broadly (Speech and Debate Clause, Art I sec 6)                                                                                                    |                                                                                                | Discretionary govt function, but not legislative function → argue for QI                                                                                                       |                                                                                                                                              |
| President - CRIMINAL<br><br>( <b>Trump v. United States</b> )                                            | <b>Core constitutional functions</b> → AI                                                                                                                                                           | Other <b>official acts</b> → presumption of imm; can be rebutted if govt shows won't interfere | – no QI                                                                                                                                                                        | <b>Unofficial acts</b> → NO immunity                                                                                                         |
| President - CIVIL<br><br><b>**can argue that Trump v. US framework should apply in civil context too</b> | AI for all presidential acts <b>within outer perimeter</b> of presidential responsibilities ( <b>Nixon v. Fitzgerald</b> )                                                                          |                                                                                                | – no QI                                                                                                                                                                        | Pre-presidential conduct → NO immunity ( <b>Clinton v. Jones</b> )<br><br>No immunity from state criminal subpoena ( <b>Trump v. Vance</b> ) |
| Judge                                                                                                    | In judicial capacity ( <b>Stump</b> )                                                                                                                                                               |                                                                                                | In administrative capacity ( <b>Forrester</b> )                                                                                                                                |                                                                                                                                              |
| Prison officials                                                                                         | Acting in classic adjudicatory function → could be AI                                                                                                                                               |                                                                                                | NOT a classic adjudicatory function → QI ( <b>Cleavinger</b> )                                                                                                                 |                                                                                                                                              |
| Prosecutor                                                                                               | prosecutorial function intimately associated with CRIMINAL TRIAL process → AI ( <b>Imbler</b> ) (including getting warrant ( <b>Burns</b> ))                                                        |                                                                                                | Investigative capacity → QI ( <b>Burns</b> )<br><br>Eg telling police what investigative methods to use (hypnosis) ( <b>Burns</b> )<br>Warrantless wiretap ( <b>Mitchell</b> ) |                                                                                                                                              |
| Head Prosecutor                                                                                          | Administrative/managerial function, but closely related to the criminal trial process → AI ( <b>Van de Kamp</b> ) (failure to turn over evidence = still closely related to criminal trial process) |                                                                                                | Investigative capacity → QI ( <b>Burns</b> )                                                                                                                                   |                                                                                                                                              |

Scheuer v. Rhodes (1974):

- Plaintiffs suing state officials under 1983 after student deaths because of unrest at Kent State University/Ohio National Guard
- Seeking:
  - Injunctive relief → affirms EXPY (although now would say no standing bc Lyons issue; too speculative)
  - But also seeking damages → can they get it?
- Gave two rationales for official immunity - **unfairness and deterrence** (see policy notes)
- Reversed and remanded for district court to consider whether these state officials get immunity

**1. Judges/Prosecutors**Stump v. Sparkman (1978): 🧑🏻‍⚖️

- **JUDGE ACTING IN JUDICIAL CAPACITY/FUNCTION → ABSOLUTE IMM**
- a divided Supreme Court upheld the immunity of a state judge who ordered a tubal ligation on a 15-year-old girl who was told she was having an appendectomy.
- Mom said daughter was mentally disabled, asked the judge to get her sterilized, and they did, but she didn't know
- There was **absolute immunity (AI)** for the **judicial function**
- **1. Judge is exercising common function for judges**
- **2. Parties believe judge is acting in judicial capacity**
- (law clerks, witnesses, jurors all typically get AI too)

HYPOs:

- Judge openly states he is convicting the defendant because he's Black. Can the defendant sue the judge? NO because judge acting in judicial function/capacity → absolute immunity
  - Absolute means absolute
  - Doesn't matter how egregious it is
  - But other remedies: call for mistrial, etc
- BUT if judge doing something in her personal life, nothing to do with her job → no immunity; depends on whether they're in the role
- Judge accepts bribe for ruling certain way?
  - Probably absolute imm because the deed isn't done til judge acts in judicial function to enter the ruling
  - For judges, err on the side of AI

Forrester v. White (1988): 🧑🏻‍⚖️

- **JUDGE acting in ADMINISTRATIVE CAPACITY → QUALIFIED IMM**

- Example of administrative capacity: firing employee

Cleavinger v. Saxner (1985): 

- **PRISON COs on DISCIPLINARY COMMITTEE → QUALIFIED IMM bc NO ADJUDICATORY FUNCTION**
- the Supreme Court considered the status of **corrections officers** who sat as members of a **disciplinary committee** to hear charges that inmates had violated prison rules
- Court: officers were **NOT fulfilling a “classic” adjudicatory function**
- BUT adjudicatory boards at prisons could play judicial functions in some contexts and get absolute imm - *it's about the function not the job*

Imbler:  

- **PROSECUTOR acting in prosecutorial function intimately associated with CRIMINAL TRIAL process → ABSOLUTE immunity (Imbler)** (including getting warrant (Burns))
- Prosecutor (unknowingly) presented perjured testimony; got absolute immunity
  - Used a police sketch that had been altered to look more like Imbler

Burns v. Reed:  

- **PROSECUTOR acting in INVESTIGATIVE capacity → QUALIFIED IMM**
- Prosecutor gave police permission to interview witness under hypnosis → qualified immunity because court says acting in their investigative capacity
  - When acting like PO and investigating someone → only QI applies
- **But also: Prosecutor got warrant using the confession without telling judge about the hypnosis; presenting false/misleading evidence → absolute immunity**
  - Part of the criminal trial process - presenting false and misleading evidence in court → absolute immunity

Van de Kamp v. Goldstein:  

- **PROSECUTOR'S SUPERVISOR overseeing work intimately associated with the criminal trial process → ABSOLUTE IMM**
- **Administrative function, but closely related to the criminal trial process**
- LA County DA was sued about stuff that they should have turned over
- If D had sued the actual line prosecutor/ADA for not turning over evidence → absolute immunity would apply bc criminal trial context
- Suing guy above him → admin function of failure to train → QI? NO
- But the court said they still get ABSOLUTE IMMUNITY!
- Still closely related to the trial process

- We know the line pros would clearly get absolute imm even for violating the const in the context of conducting a criminal trial - what you're doing is suing a person up the food chain - that is intimately associated with the criminal phase of the trial

Mitchell v. Forsyth: ➡

- Prosecutor: Warrantless wiretap → QI because not intimately associated with criminal trial process; investigative function

## 2. Presidential Immunity

Presidential Immunity Generally:

- Presidential Immunity itself has no basis in the constitutional text or any statute
- Could argue that president should get less immunity in criminal context versus civil context
- Presidential immunity can be waived if not raised
- **CIVIL** suits:
  - President gets AI while president for all acts within **outer perimeter** of president's responsibilities (**Nixon v. Fitzgerald**)
  - Presidents get no immunity for suits stemming from pre-presidential conduct, even while in office (**Clinton v. Jones**)
  - No immunity from state criminal subpoena (**Trump v. Vance**)
    - *Trump v. US would probably apply in state court too, but since it doesn't really say anything about subpoenas on third parties, might not affect Trump v. Vance*
- But what is outside the outer perimeter of presidential duties?
  - Being president is 24/7 job; could argue even shooting someone on the street is an exercise of presidential duties (making public declaration or something)
- **CRIMINAL** suits:
  - DOJ policy not to indict sitting president
  - **Trump v. US** framework:
    - **Core constitutional functions** → AI
      - Ex: pardons, removal, coordinating with DOJ
    - **Official acts**: (outer perimeter) → presumption of immunity
      - Rebut the presumption: govt shows no intrusion
    - **Unofficial acts**: totally private: outside the perimeter
      - No immunity
    - **Evidentiary rule**: any evidence related to the president's core functions cannot be used in any criminal case unless the evidence was publicly available (including for prosecutions about unofficial, private conduct)
  - Hard to know what is official v. unofficial

- Seems like public communications would be within outer perimeter but tweets as candidate for office or party leader may be unofficial
- How much of this will carry over from criminal to civil context?
  - SCT: statements to general public falls within official conduct → that will probably carry over to civil

Nixon v. Fitzgerald:

- President has to deal with really difficult, sensitive issues, he's highly visible, and his actions affect countless people → target for lots of litigation
- And all these suits would ~distract from his presidential duties~
- President has AI for all acts within the outer perimeter of the president's responsibilities
- White Dissent: AI places president above the law

Clinton v. Jones:

- Clinton was sued re: conduct from before he entered office, claimed AI from suit while sitting president
- Court said no immunity for pre-presidential conduct, even while in office
- Court relied on the sound discretion of *district judges* to protect sitting presidents from harassment and frivolous litigation

Trump v. Vance:

- State subpoena'd third party (Trump's accounting firm)
- Trump intervened; argued that sitting president gets AI from state criminal process/subpoenas
- **No immunity from state criminal subpoena**
- Relying on district court again; properly tailored criminal subpoena won't ~interfere with the President's duties~
- Note: this would normally trigger Younger abstention issue (enjoining ongoing state court proceeding) but lower court said there was an overriding need for federal involvement, and SCOTUS didn't say anything about it

Trump v. US:

- See notes above

**3. Qualified Immunity**

**OBJECTIVE TEST** to overcome qualified immunity: **\*\*Harlow, Brosseau**

*Overall standard: Reasonable official should have known that this was a violation? (Harlow). To determine this:*

- **Was there a violation of a constitutional right under these facts?**

- (more like a merits decision)
- **Was that violation clearly established under these facts at the time of the defendant's conduct (Harlow, Brosseau)?**
  - Level of generality is very specific to the facts (Brosseau)
    - Has to be that there was a prior decision under similar factual circumstances that put the official on notice that the conduct violated the law (Brosseau)
  - But if objectively unreasonable such that no reasonable official would have believed action was constitutional → can overcome QI (Hope, Taylor)
  - *[Plaintiff: it was clearly established at that time [draw similarities]. To the extent there are any novel factual circumstances, it would be objectively unreasonable to think that under these facts, there is no constitutional violation (Hope, Taylor). Don't need a case exactly on point (Hope, Taylor)]*
  - *[Defendant: even if it was, in fact, a violation, that this conduct was a violation was not clearly established by the case law at the time of my conduct. Assert ambiguities/distinguish from case law.]*
  - *Make sure you are not relying on cases decided after the defendant's conduct*
  - *Use the facts!*
- **\*\*Which courts?**
  - **SCOTUS and regional courts of appeals decisions** count for purposes of determining what is clearly established law in this context
  - (although SCOTUS recently may have called that into question re: courts of appeals in Taylor v. Barkes)
  - District court decisions and state supreme court of that state can't make clearly established law, but doesn't mean they're irrelevant

Brosseau v. Haugen: [YES QI]

- Officer shot Haugen as Haugen was trying to get away
- court said there was QI for PO
- Might have thought before reading this case that if the officer stops them by shooting them that was excessive force, Court says it wasn't necessarily excessive force if she was trying to stop him from harming others. Court said there was a gray area - not clearly established
- **1. Was there a constitutional violation?**
  - has to be under these facts
- **2. Clearly established?**
  - Under these facts at time of defendant's conduct
- Specific level of generality: would a reasonable official acting under these circumstances have known that the official was violating a const right (Brosseau)
  - Specific to these facts



Hope v. Pelzer: [NO QI]

- Prisoner was cuffed to post for hours, stripped, not given water, sunburned
- NO QI
- Novel factual circumstances ok when outrageous
- There doesn't have to be a case on point (Hope)
- Doesn't have to be materially similar (Hope)
- It shocks the conscience - should be clear

Taylor v. Riojas: [NO QI]

- Prisoner left in cell with sewage over floor, no bed, had to sleep on floor
- No case on point
- But the conditions were so extreme that the officials should have known
- Has to be low level of generality but not too low

**Order of Battle:**Ziglar v. Abbasi:

- Case about detained people accused of terrorism
- Govt officials got QI because not clearly established that govt officials could be guilty of conspiring with each other when they are talking and working together in their official capacities
- Thomas Concurrence:
  - Advocating to return to the understanding of qualified immunity at common law in 1871
  - Wants to get rid of the "clearly established" thing
  - So even some conservatives want to get rid of QI!

Wilson v. Layne and Saucier v. Katz

- Order of battle: first, determine 1) whether the constitutional right has been violated. Then, decide 2) whether the law is clearly established

Pearson v. Callahan (2009):

- The court rejected the merits-first approach, said it was waste of resources
- Didn't decide underlying merits issue
- *Option* to decide only step 2 is now open; don't need to resolve whether in fact it actually was a constitutional violation
- Courts can do it either way

Order of Battle Policy:**PRO** Deciding whether it was a constitutional violation:

- Developing the law: This way the law can be decided/rules can be refined without imposing liability for conduct the legality of which was previously unclear (Wilson)
  - Otherwise, you are freezing the law in place
  - same issue could keep coming up and never get a merits decision; it will never become clearly established
  - We won't develop our understanding of the law/constitution
    - the effective meaning of the constitutional right would be, not what judges thought it did or should mean, but what government officers could reasonably believe it meant (Wilson)
- No Liability Option: Can determine that there was a constitutional violation, but that it wasn't clearly established, so the D does not have liability, but now everyone is on notice, everyone knows → can decide constitutional issues without worrying about fairness to the D
- Need deterrence: the fewer decisions there are, the easier it is for them not to abide, but deciding cases would put them on notice and make the officers worried. But if the decisions are really tied to the facts of the case, then not much

**ANTI** deciding whether it was a constitutional violation:

- Don't waste judicial resources
  - If not clearly established, does it matter if there was an actual violation? No its dicta, the case comes out the same way if you decide the law is not clearly established
- Constitutional avoidance: can avoid deciding the const question
  - This is a stat interp doctrine
- Underdeveloped factual record
  - Pleading - done at stage of pleading - no discovery, deposition, etc
  - These cases tend to be decided now at the MTD stage - all you have are the facts alleged in the complaint
  - So deciding const claims on facts that are not fully established - that one party is just alleging - is weird, seems a little hypothetical
  - (but arguably doesn't matter because not like the D is going to be held liable on those facts that he didn't get a chance to contest)
- Def less incentive to appeal
  - you can appeal even if you win on QI at step 2 but get bad decision on step 1 - but why would they really care to appeal?
- Decisions are really tied to the facts of the case; if you're deciding this very narrow factual issue, not actually developing the law or deterring future conduct

Goals of 1983 / const torts generally:

- Two major goals are compensation and deterrence
- These are the basic purposes of a section 1983 damages award
- Damages compensate victims, deter repeating those violations, affirming legal rights, etc
- Official immunity compromises these objectives
  - But regular tortfeasors don't get this immunity when law is arguably unclear
  - Why are govt officials different?

Policy:**PRO Official Immunity:**

- unfairness/injustice: when legally required to exercise discretion and do stuff, if they then get punished for that, that's unfair (**Scheuer**)
  - Scheuer Court: identified rationale for official immunity: "the injustice, particularly in the absence of bad faith, of subjecting to liability an officer who is required, by the legal obligations of his position, to exercise discretion."
- Deterrence: we don't want officials to be so worried that they don't do what they're supposed to do (**Scheuer**)
  - Don't want to over-deter officials to the extent that they stop doing their jobs out of fear of litigation → qualified immunity fixes that
  - Even though they won't actually pay the damages themselves, just having a lawsuit pending against you can be problematic when applying for loan, etc
  - Financial: you won't get paid more for doing your job well, but you might have to pay damages if you do your job wrong → financial incentive not to act; QI corrects that
  - & Other collateral issues for the individual officer - affecting credit, etc, could appear in media, lots of stigma, it's not fun to be sued, huge reputational cost; piss off taxpayers
- Govt: The govt itself might have failed to train them
  - But can't sue govt either bc of sov imm

**ANTI Official Immunity:**

- No clear support in constitution or statute
- We want to deter them from the egregious things they've done (police brutality); deterrence is good
- Might incentivize local police depts to train their officers more on the law?

Policy: Who Gets AI v. QI:

- AI for judges/prosecutors but QI for police officers – why?
- There are other checks on judges/prosecutors:
  - judges are check on prosecutors, and appellate judges are check on trial judges
  - Lawyers can be disbarred
  - Can still get relief as part of the criminal trial (call for mistrial, etc)

**C. Implied Private Rights of Action**

*Plaintiff will start with Cort and say but I still win under Alex;*

*Defendant will start with Alex but say it will still win under Cort*

**Implied Private Rights of Action Generally:**

- Definition - courts infer PRAs when statutory text does not discuss private enforcement
- Courts still use both tests - Cort and Alexander
- Will typically come up when private party is suing private party

**Cort v. Ash:**

- (back when Cort was decided it would have been unthinkable for court not to look at legislative history, think about the goals, etc)
- Bethlehem Steel director puts out ads saying that corps do pay their fair share in taxes; shareholders sue
- Was there anything in the statute that said private parties could sue?
  - No
  - It was a criminal statute - talked about criminal enforcement
- **TEST** to determine whether a private remedy is implicit in a statute that does not expressly provide for one: 4 parts
- **1. Statute enacted for the benefit of the plaintiff**
  - Look at the text: **rights-creating language?**
  - Same as Gonzaga first step
- **2. Leg intent to allow it?**
  - Look at legislative history to see what individual lawmakers said
- **3. Is it consistent with the legislative purpose?**
  - More objective: text, overall context of the statute, overall purpose; would allowing this PRA be consistent with that?
- **4. Traditionally relegated to state law?**
  - **Prong 4 has not been super important**
  - Except for prison administration
- In Cort: there was no implied private right of action
  - Primary concern was to prevent money from interfering with elections

**Cannon v. U Chicago:**

- sex/gender discrimination under title 9 suit → can a private individual bring suit under title 9 to enforce the rights protected by title 9?
- 1. Statute enacted for the benefit of the plaintiff?
  - YES: designed to prevent gender-based discrimination; “no person shall”
- 2. Leg intent to allow it?

- YES
- 3. Is it consistent with the legislative purpose?
  - YES: goal is to deter, not worried about overdeterrence
- 4. Traditionally relegated to state law?
  - NO
- Except for prison administration

Alexander v. Sandoval:

- Question: Can private individuals sue to enforce disparate-impact regulations promulgated under title 6 of the Civil Rights Act of 1964?
  - There's Section 601 and 602
  - 601- no person shall be discriminated against
  - 602 - regulatory enforcement part
  - Can there be a private right of action under 602

**TEST:**

- **1. Does the statute create a private right? Looking for rights creating language**
  - This part of the analysis is exactly the same as Gonzaga
  - Person v. aggregate focus
  - (Section 602 fails here, too removed from plaintiff)
- **Prong 2: PRESUMPTION:**
  - if the statute provides any other remedy at all, then there's no implied private right of action
  - Doesn't matter if the provided remedy is not available to the plaintiff
  - Unclear if this presumption can be overcome
- Tough test to satisfy
- **Did not purport to overrule Cort**
- Statute at issue in this case failed on step 1

\*see policy arguments in policy outline

**D. Federal Common Law**

- **FCL Definition: Rules of law created by fed courts that do not purport to derive from the const or a statute**
  - *They aren't even pretending to be interpreting the const/statute, they are explicitly acknowledging that they're creating the rule*
- Typically, federal court can't make general federal common law (Erie)
- But there is specific federal common law
- There are some ENCLAVES where it's allowed

**Enclaves of FCL:**

- State v. state: interstate disputes
  - Not fair for one state law to govern if states are fighting
  - Connection to Const: Supreme court has original jurisdiction
- Admiralty
  - Connection to Const: fed courts have jx over admiralty cases (Art III)
  - it would be mess if each state had control; need level of uniformity
- When US govt involved in contracts/property disputes
  - Did the US govt breach its contract? Is it a valid contract? Don't rely on state law - judges can create law to answer these questions
  - Connection to Const: also explicitly stated in Art III
- Foreign affairs
  - Connection to Const: implicit

**But we have a lot of doctrines that are also arguably FCL!**

Examples from our class that do not purport to be derived from either the const or fed statute?

- **Abstention**
- Pullman abstention
  - State law claim and fed law const claim
- Younger abstention
  - The court didn't rely on statute in inventing this - in fact there was statute on point but didn't rely on it
- Colorado River abstention
  - Bunch of factors
  - Comes up when concurrent federal and state court proceedings
- **Official immunity**
  - QI and AI
- **Political question doctrine**
  - Does look like it was made up but the court says it derives from article 3
  - They say this is outside of the judicial power

- So you could argue about this one
  - But probably don't add it to the list
- **3rd party standing**
  - Plaintiffs in the case have constitutional standing but they will say no still for prudential reasons - won't hear the case even though there is Art 3 jx over it
- **Bivens??**
  - Argument: the judiciary invented this because think ppl should be able to vindicate their rights
  - Other hand: if you think implied private rights of action derive from statute interpretation then maybe Bivens is just an interpretation from the US Const
  - Brennan probably thinks he is interpreting the Const - there has to be a remedy to fulfill the purposes of the US Const - to fulfill the Const's purposes
  - But Bivens is under the federal common law chapter in the casebook and all major case books have done this - she thinks this is weird because Brennan seems to claim he is just interpreting the Const
- Arguably FCL is quite broad

### **Government Contractor Defense (Boyle):**

- Common law defense **against state law claims**; defense is preempting the state law claim; Court basically saying the federal government interests are more important than your state law claim
- Extends to all government contractors, not military contractors
- **TEST:**
  - **1. Are there uniquely federal interests at issue?**
    - *Defined broadly*
    - *(Analogize to the enclaves: state v. state, admiralty, US contract disputes, foreign affairs, federal official immunity?)*
    - *Shouldn't be too difficult to find one; pretty lax step*
  - **2. Is there a significant conflict between the state law requirements and the federal policy at issue?**
    - *Will the state law affect the federal interest? Will it be difficult for someone to comply with both the state law and federal policy? Will US government officials need to testify in the state court case?*
    - *Fact specific*

### Boyle v. United Technologies Corp:

- Marine helicopter pilot Boyle died: unable to escape from helicopter, drowned because escape hatch faulty
- Q: can a military contractor be held liable under state tort law for death caused by helicopter design defect?

- Huge jury award (that went poof)
- In areas of **uniquely federal interest**, it's ok to have federal common law that preempts state law
  - Court says this case is related to enclaves already recognized:
    - US contract disputes
    - federal official immunity
  - Here, **unique federal interest = procurement of (military) equipment** (imposing liability of govt contractors will affect the price/discourage contractors from contracting)
- **Significant conflict between the state law requirements (tort) and the federal policy at issue?**
  - There is direct conflict: state tort law requires one thing; govt design specifications they are supposed to carry out require another
  - Relates to FTCA: waiver of sovereign immunity *except* for claims based on discretionary functions
    - Court: selecting appropriate design for military equipment is a discretionary function under FTCA → there is sovereign immunity
    - “Second-guessing” these judgments through state tort suits against contractors would defeat purpose of FTCA in keeping immunity for govt employees
    - If the govt would be immune when it produces the equipment itself, then the govt contractor making the equipment should be immune too

#### Policy against Government Contractor Defense:

- Federal officials have duty to act; financial incentives push towards inaction
- But private contractors have leeway to decide whether to do something; can calculate litigation risk and raise prices accordingly
- Should be up to Congress to decide

#### Customary International Law:

- **CIL = Norms that are supposed to be understood by all countries and bind all countries; widely accepted**
  - Example: prohibitions on torture (don't have to be that extreme)
  - Note: Customary intl law is not necessarily bound to particular treaties
- Can courts recognize customary int'l law that has not been adopted by Congress or the president?
  - Yes, sometimes (**Sosa**)

#### Policy: problems with Court incorporating customary international law (Sosa):



- Floodgates!! there are lots of human rights violations all around the world and everyone will come to the US
- Interfering with foreign govts - much of this stuff occurs in foreign country, could be regulated in foreign country's law
- This isn't the job of the fed judiciary - congress and president can incorporate this stuff into the laws
- Interfere with foreign affairs
- Congress could give fed courts this authority to do this but they haven't
- We sorta said this is illegitimate in Erie
- By 2004 - attitudes towards FCL/implicit PRAs/Bivens had shifted - SCT was treating them badly

#### Sosa v. Alvarez-Machin:

- Crazy DEA hiring kidnappers case; doctor eventually acquitted and then sued the people who abducted him and the federal govt; at SCT, Sosa only D left (abductor)

#### **Alien Tort Statute:**

- Claim against Sosa under the Alien Tort Statute for violation of customary intl law:
  - ATS: *"the district courts shall have original jurisdiction of any civil action by an alien for a tort only, committed in **violation of the law of nations** or a treaty of the US"*
  - (statute didn't get much action until 2nd Cir ruled that people could come to the US and sue for human rights violations abroad; Q in Sosa: do we let lower fed courts continue to recognize violations of intl customary law and allow ppl to sue about them?)
- SCT: ATS is jurisdictional statute; can't create substantive rights from it
- EXCEPT at the time, things worked differently, courts had an obligation to "find" general common law; wouldn't make sense to interpret ATS as a stillborn statute

#### **The ATS applied to 3 historical areas**

- Violations of safe conducts
  - Tldr: you should be able to travel in the US without getting assaulted, etc
- Infringements on the rights of ambassadors
- Piracy (pirates)
- **And Court adds some more:** Decides to recognize some other stuff too but not too much
- **Test:**
  - Has to be *widely accepted* and *specifically defined* like piracy, violations of the rights of ambassadors, and safe conduct violations
  - Also must consider the *practical consequences* - will there be floodgates? Will we be interfering with political branches? Undermining foreign relations? What will happen if we allow this kind of claim?

## Application Here:

- Not specific enough - Plaintiff was talking about **arbitrary arrest and detention** which is not specific enough; might be widely accepted but we're not sure what it is
- Practical consequences:
  - Concerned about the courts entering field of foreign affairs
  - Worried about discretion of officers - if you exceed your authority, you will be taken to court
    - Sad - seems like they're thinking this happens a lot
  - Floodgates
- Didn't let the doctor sue; but left the door open to recognizing CIL

Scalia Concurrence:

- We decided in Erie that it is illegitimate for Courts to make this stuff up; and now court is making it up
- courts do not have the right to create private federal causes of action for violations of customary international law
- Nonsense upon stilts and never say never jurisprudence

**Presumption against extraterritoriality:**Kiobel v. Royal Dutch Petroleum Co. and Nestle USA v. Doe:

- **"presumption against extraterritoriality"**: SCT ordinarily presumes that federal statutes apply **only to conduct occurring inside the United States**
- **Case must touch and concern the US**
- Kiobel: presumption against extraterritoriality applies to claims under the ATS → ATS does not apply to things that happened outside of the US, and **nothing in the statute rebuts that presumption**
- **To rebut: need sufficient tie to US conduct**
- Nestle: Plaintiffs allege they were enslaved as child laborers in West Africa and the US Corp aided and abetted that conduct
  - Fact that the companies do business here in US is not enough to rebut the presumption
  - But if the corporations were making decisions here in US related to that conduct, could be enough

**E. Habeas Corpus: Reviewing State Court Judgments in Criminal Cases****Habeas:**

- Civil proceeding challenging the legality of detention
- SCOTUS could only review people who were detained in fed custody but then 1867 Act: Congress said SCOTUS can have habeas review over anyone, not just those in fed custody (bc Reconstruction)
- The prisoner filing habeas petition = petitioner; detainer = respondent
- Relief sought:
  - Release
  - Asking for new trial
  - New sentencing proceeding if don't want to contest guilt
- AEDPA (1996) made it much harder to get habeas review
- Note if you are detained during state criminal proceedings and go to federal court pre-trial to challenge prosecution → Younger abstention
- Death Penalty does not get special treatment under habeas

**Text of 28 U.S.C. § 2244:**

- If you already raised a claim in a previous habeas petition, court won't hear it again
- If you didn't raise the claim in a previous petition, court won't hear it unless
  - Claim is based on a new constitutional ruling that was made retroactive OR
  - Claim is based on facts that:
    - Could not have been discovered thru reasonable diligence AND
    - The facts would actually matter (no reasonable factfinder would have found the applicant guilty of the underlying offense)
- 1 Year SOL based on whatever is latest:
  - Date on which the state court judgment became final OR
  - If there was an impediment created by state action, the date on which the impediment was removed, OR
  - Date of new constitutional ruling OR
  - Date on which new fact could have been discovered thru exercise of due diligence
- Time during which state post-conviction/collateral review is pending does not count towards SOL

**Text of 28 U.S.C. § 2254:**

- Only possible grounds for habeas petition = **custody violates US const, laws, or treaties**
- Have to exhaust state remedies
- Standard for reviewing state court adjudications of the claim:
  - **If state court adjudicated the claim on the merits, that is final unless:**

- It resulted in a decision that **was contrary to, or involved an unreasonable application of, clearly established Federal law, as determined by the Supreme Court of the United States; or**
  - resulted in a decision that was based on an unreasonable determination of the facts in light of the evidence presented in the State court proceeding.
- **The ineffectiveness or incompetence of counsel** during Federal or State **collateral post-conviction proceedings** shall **not be a ground for relief** in a proceeding arising under section 2254 (so for decisions on the merits).

### **Habeas Hitlist:**

#### **2244: Baseline Habeas Procedural Requirements:**

- **“In custody”**
  - Jail, house arrest, immigration detention, parole/probation
  - If person leaves custody and then brings hab petition → dismissed as moot
- **1 year time limit**
  - Tolerated while state appeals/habeas petitions are pending
- **Exhaustion of state court remedies**
  - Need to exhaust direct appeal and state habeas proceedings
- **No right to counsel during habeas**
  - Which means can't have IAEC claim for habeas petition
  - And if there was no right to counsel in the state court proceeding (usually no right to counsel for state supreme court appeal), then no IEAC claim for that either
- **Hard to file successive petitions**
  - Can't keep filing petitions over and over again
  - But there are exceptions: if there was *conduct* that were criminalized before and SCT said can't criminalize this conduct anymore, like with Lawrence, and made retroactive - then could bring habeas (SCT, not Congress changing the law)
  - Interaction with Edwards?

#### **2254(d): Habeas not granted unless state court decision **\*\*on the merits\*\*** is:**

- 1. Contrary to
- 2. Unreasonable application
- - clearly established law by SCT precedent
- **THROUGHOUT: REMEMBER: Clearly Established by SCT Precedent:**
  - Must be SCT **holdings**, not dicta (**White**)
    - *So even if they said something that seems like really strong support, might not be enough!*

- AND it must be clearly established **by the time the conviction becomes final** (end of direct appeals) (**White**)
  - *So even if SCT decides something helpful to you after your conviction is final, doesn't help you here, but note new substantive rule exception (Teague)*
- **Contrary to:** (**Williams v. Taylor**)
  - 1. State court applied wrong legal test OR
  - 2. Essentially the same facts but different result
    - “Materially indistinguishable facts” (**Williams**)
    - Cases look identical
  - If state court issued summary decision, virtually impossible to win here
- **Unreasonable Appl:** (**Williams**)
  - **Williams:** extremely high standard, unreasonable
    - *Grove: first thing respondent should emphasize: standard of reviewing the state court decision: must be objectively unreasonable, not just wrong. (Williams, White)*
  - **White:** adds to this: objectively unreasonable, not merely wrong or erroneous
    - **\*\*no reasonable jurist** possible could decide that way (**White**)
  - **Strickland/Doubly deferential** stuff comes in on this prong:
    - **1. Note the 2254d standard:**
      - fed court cannot grant hab at all unless state court rejecting the claim was contrary to or unreas appl of clearly est SCT precedent
    - **2. If state court was applying a standard, not rule → federal court is doubly deferential (Burt, Renico)**
    - **3. Apply Strickland IAEC Test**
      - Put 2254d out of your mind
      - **Deficient:**
        - Counsel's performance was deficient
        - Counsel made very serious errors, and they cannot be explained as *reasonable strategic choices*
      - **Prejudicial:**
        - Reasonable probability that **but for** the lawyer's error, the result would be different
        - *Other evidence of guilt?*
    - **4. “Fair-minded disagreement”:** If there good arguments on both sides, state court decision probably fine (bc it can't just be wrong but really wrong; objectively unreasonable)

### On the Merits:

- Note: if state court decision is NOT on the merits → **procedural default?**

- **Summary Decisions:**

- If state court issued summary decision (just says habeas denied), it is a decision on the merits (**Harrington, Johnson**)
- *Petitioner will have to show there was no possible basis/plausible basis for the state court's decision*
- Fed court will basically invent the rationale for the state court: look at the record, analyze, and decide if the analysis they made up is unreasonable application
- Interaction with “contrary to”:
  - Summary decision makes it virtually impossible to win under this standard
  - can't be the wrong legal test because we don't know which one court applied
  - And materially indistinguishable facts is very difficult anyways

- **Partial Decisions:**

- If just ruled on some claims but not all: treated as a decision as on the merits for all claims, unless court explicitly says they didn't decide a claim (but that could be bc of **procedural default**)

### **Freestanding Claim of Innocence:**

- Freestanding Claim of Innocence = not tied to any separate constitutional violation
  - Nothing went wrong with the process, but I'm just innocent
- **Herrera** doesn't actually decide whether a FSCI available under habeas; but if it is possible, it would be *extremely difficult to get*
  - petitioners don't raise them anymore; essentially eliminated
- **House v. Bell** suggests the standard would be even higher than showing that no reasonable juror would have found the defendant guilty

### **Herrera:**

- Big debate over whether executing/imprisoning factually innocent person would be a constitutional violation in and of itself
  - They don't decide this
  - (might not be const violation because if process was all in accord with const, and got a verdict, you're legally guilty; that's all the const requires)
- Big debate over whether a FSCI should be available under habeas
  - They don't really decide this either
  - But they do say if it is, it is a really high bar, must seem pretty obvious that the person is actually innocent
- Policy: Concerns with allowing FSCI:
  - Floodgates
  - History of hab: not to determine innocence but rather looking for violations of US constitution, laws or treaties

- Finality concerns
- Federalism
- Potential other avenues for relief through state/parole board were (arguably) available (clemency, etc)
- Blackmun Dissent: DP to actually innocent person = like murder

### **Procedural Default**

#### **Exhaustion Requirement:**

- **Issue spotting**: some evidence that claim failed in state court because failed to comply with state procedural rules?
- You have to raise the claim in state court first *following the state court procedure*
- Failed to raise the claim in accord. w/ state court procedures → didn't **exhaust** your state court remedies (bc didn't bring claim in right way) → **procedural default**
- **General Rule**: Procedurally defaulted claims are barred from habeas review
- **TWO WAYS AROUND** procedural default:
  - **Wainwright** - cause and prejudice
    - Rehnquist worried about defense counsel sandbagging
  - **House v. Bell** - Gateway claim
- If you do get around procedural default: should get de novo review bc state court decision was not on the merits

#### **Wainwright:**

- Claim that procedurally defaulted is barred unless can show cause and prejudice (or gateway claim - below)

#### **Cause for failing to comply with state court procedures:**

- Something **external** to the petitioner that **impeded compliance** with state procedural rule
  - Examples: [NOT AN EXHAUSTIVE LIST]
    - IEAC
      - Wainwright: lawyer didn't object to admission of confession made while D intoxicated
      - your state-appointed lawyer fucked up, not your fault (but can *argue* if D chose the lawyer, that's D's agent, not external)
      - IEAC applies only when there's right to counsel; usually for trial and first direct appeal (if your lawyer fucked up filing state habeas petition, tough shit)
    - Abandonment by counsel (different from IEAC - totally abandoned)
    - State misconduct/interference by state officials
      - Brady violations, jury tampering, etc

- (Note that if there was a late filing, etc, and also later discovered Brady violation, the cause is the not the Brady violation but rather the late filing)
- novel constitutional claim
  - Watershed; SCOTUS identifies right that we didn't know about before; wouldn't have known to present it to the state court

**Prejudice:**

- Reasonable probability that the result would be different absent federal law violation
  - Look for any indication of how reliable the new evidence might be/if it would change anything; and how strong other evidence was

**Gateway Claim: House v. Bell**

- Other way to get around procedural default
- **1. PETITIONER MUST MAKE TWO CLAIMS → gateway claim:**
  - Combo of **const violation** (something went really wrong at my trial) during state court proceedings and **factual innocence** claim gets you around the procedural default
- **2. Petitioner procedurally defaulted and has no cause but (extreme!) prejudice**
  - **Standard: More likely than not no reasonable juror would have convicted the D**
  - This case suggest that the Herrera standard must actually be higher than this standard (although we don't know what it is)

**Evolution of Procedural Default:**

- Pre-AEDPA cases: Daniels v. Allen, Fay v. Noia
- **Daniels v. Allen:**
  - **Procedural default = absolute bar to habeas**
  - Lawyer walked the appeal over to prosecutor's office one day late: tough shit
  - SCOTUS wouldn't be able to hear this case on direct appeal from state court because the state procedural laws would be independent and adequate state law ground for the judgement → **SCOTUS says if we can't hear it on direct review, doesn't make sense that we'd be able to hear it as habeas petition**
  - Black Dissent: this is crazy, now D has no opportunity to have constitutional claim heard because lawyer made procedural mistake
- **Fay v. Noia:**
  - Flips the rule from Daniels; much more open to habeas petitions
  - D was scared to appeal because of trial court's comments; decided not to appeal → procedurally defaulted
  - Federal habeas court can hear procedurally defaulted claim unless D **deliberate bypassed** state procedures



- This case wasn't decided to be deliberate bypass even though they literally decided not to appeal, so basically nothing was deliberate bypass
- This openness lasted for about 16 years til Wainwright

### **New Rule of Constitutional Law:**

- When can habeas courts apply new rules?
- **New rule** = not dictated by precedent; don't comply with past SCOTUS doctrine, no matter what the constitution said
  - (could argue unanimous-jury rule was actually really old, implicit in constitution, people just didn't realize the meaning of the constitution)
  - But Court prioritizing SCT decisions
- **General Rule: typically, new rules apply on direct review, but NOT (usually) habeas (Teague, Edwards)**
  - Even big procedural changes like unanimous jury req (recognized in Ramos)
  - Why not? Interests in finality, stale evidence issues, etc
- **ONLY EXCEPTION:** new substantive rules DO apply

### **Teague v. Lane (1989):**

- EXCEPTIONS to General Rule:
- Two types of new rules will apply on habeas:
  - **1. New substantive rules**
    - Substantive rule = certain conduct cannot be criminalized, or certain people/offenses cannot be subject to certain punishments
  - **2. Watershed rules of criminal procedure** 
    - Watershed = so fundamental, bedrock, not ok to conduct a crim trial any other way
    - Edwards gets rid of the exception for watershed rules (even tho no one asked them to)

### **Ramos v. Louisiana (2020):**

- Jury verdicts to convict criminal defendants must be unanimous

### **Edwards v. Vannoy (2021):**

- Edwards brought habeas petition because of Ramos; challenging his non-unanimous jury verdict
- Is Ramos a new watershed rule of crim pro?
  - NO, and actually nothing is
  - Right to jury trial was not a watershed rule, so this one isn't either
- And they get rid of the exception

- In practice, the exception has been theoretical, not real → wasting resources; no reliance interests; it's illusory
- Everyone was shocked bc no one had asked for them to overturn Teague
  - Normally they only overturn something if someone asks

Thomas Concurrence:

- Would have decided the case on AEDPA grounds
- 2245(d) text: no relief if state court reasonably rejected claim on merits
  - If you raised a claim in state court before, you are stuck with that decision unless it is contrary to/unreas appl of SCT precedent *at that time*, even if SCT changes it later
  - Would appear to obliterate even the new substantive rules exception
- Only matters what the law was at the time of the conviction

Gorsuch Concurrence:

- Historical origins: habeas only available if state court lacked jurisdiction → only for executive detention
  - But would probably maintain exception for substantive rules bc of how jx was understood at the time
- Suggests AEDPA goes way too far in allowing jx for habeas → might mean that Court should limit its interpretation of AEDPA or AEDPA is unconstitutional

The Relationship between Habeas Corpus and Section 1983

- If plaintiff has a choice, they'll choose 1983 over habeas every time
- Don't want to let 1983 swallow habeas
- **TEST:** To draw the line → **Preiser-Heck doctrine**
- **Habeas:**
  - **only way for someone in custody to challenge fact/duration of confinement (Preiser)**
- **1983:**
  - NOT allowed:
    - plaintiff winning the suit would **necessarily imply invalidity of conviction/sentence** (unless P can show that the conviction/sentence has already been otherwise invalidated) (**Heck**)
      - (can't use 1983 to get around habeas constraints, even if just suing for damages)
  - YES allowed:
    - For challenges to **conditions** of confinement if in custody (think **Hope, Taylor**)
    - For other stuff: if conviction/sentence otherwise invalidated (**Heck**)
      - *Examples: conviction overturned/expunged on appeal, state habeas, federal habeas, pardon*

Chart comparing 1983 and Habeas:

| 1983                                                                                                 | Habeas (Review of state crim convictions)                                                                                                                                                                                                |
|------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Deprivation of rights under color of state law, for violations of const and laws                     | When D is in custody in violation of const or US law or treaties                                                                                                                                                                         |
| NO state court exhaustion requirement (Monroe)                                                       | YES exhaustion requirement - need to exhaust state court remedies                                                                                                                                                                        |
| NO procedural default - can't procedurally default if never had to file in state court to begin with | YES procedural default hurdle - if you procedurally default, that's bad - need to get one of the exceptions                                                                                                                              |
| NO deference to state court bc don't have to file in state court                                     | When a state court has decided claim on the merits - the fed court will look at what the state court decided - 2254d - contrary to/clearly est - basically heavy deference requirement - fed court can't come and do something different |
| No clear SOL for 1983 - they'll use state SOLs - not usually 1 year, usually longer                  | SOL - 1 year - but could be tolled for different reasons                                                                                                                                                                                 |
| REMEDIES<br>Any relief!<br>Damages and future relief -<br>injunctions/declaratory relief             | REMEDIES<br>New sentencing proceeding, might get released, might get new trial<br>Future looking relief or declaratory relief                                                                                                            |

Preiser v. Rodriguez:

- Petitioners brought suit seeking injunctive relief to restore their good time credits so that they could get out of prison earlier
- If you are challenging the **fact or duration** of your confinement → you have to go through habeas
- This is not in the text of 1983, but the more general statute has to be limited so the more specific statute can apply
- Leaves open 1983 damages suits: Prisoner could bring damages action under 1983 because can't get damages through habeas, wouldn't be a habeas case if seeking damages

Heck:

- Heck convicted of manslaughter
- While criminal case is on appeal; criminal defendant initiates 1983 suit against prosecutor for damages, alleging misconduct
- Can't sue for an injunction because of Younger Abstention
- Can't get damages under habeas
- But still, court won't let 1983 suit go forward:

- **No 1983 if judgment in plaintiff's favor would necessarily imply invalidity of conviction/sentence *unless* P can show that the conviction/sentence has already been otherwise invalidated**
- Heck says look - if it gets overturned on appeal or something, then sure, bring damages claim
- Otherwise, allowing 1983 for damages in this context would interfere with state criminal proceeding - same underlying principles as Younger abstention

### PART III. BEYOND ARTICLE III COURTS

#### A. Congress's Power to Create Non-Article III Tribunals

##### Can Article III Courts exist? General Rules:

- RULE for long time:
  - No A3 courts for bankruptcy (**Northern Pipeline, Granfinanciera**), but everything else sure, just need to balance the interests (**Union Carbide, Schor**)
- BUT then came **SEC v. Jarkesy**:
  - **If suit is similar to a common law claim → needs to be heard by a jury**
  - **If statute incorporated common law claim and \$ sought, jury required (Jarkesy, Granfinanciera)**
  - 7A amount in controversy req supports this particularly when govt is seeking civil penalty
  - Common law claims: duty, breach of duty, causation, actual damages

##### Can Article III Courts exist? Theories:

- **Literal Interpretation**: If you read Article III literally, no
  - "The judicial power of the US shall be vested in..."
  - Requirements: good behavior/life tenure, salary protections
  - But this literal approach has never been the law
- **Art 3 Review**: as long as there's Art 3 review, there can be non-Art 3 courts
  - Never been adopted by SCT but does influence their jurisprudence; see references to it
- **Balancing**: [Court's approach]
  - Can't be literalist when it comes to Art 3, that would ahistorical and not convenient, but also don't want Congress to destroy art 3 courts → just case by case seeing what the effect is on the separation of powers

Northern Pipeline:

- the Supreme Court held that the new bankruptcy courts violated Article III (plurality)
  - Court may have thought it was ok to do this because court had only been established few years earlier, not too disruptive
- **3 HISTORICAL EXCEPTIONS** where non A3 courts allowed
  - Territorial courts
  - Courts martial
  - Public rights adjudication
- **This far and no further**
- Why?
  - These are areas of where traditionally, Congress has had a lot of power; separation of powers is less of a concern
- **Public Rights v. Private Rights:**
  - Private rights:
    - private party suing other private party about contract, tort disputes, etc
    - Often created by state law, not federal law
  - **Public rights:**
    - **Suits involving govt benefits:** licenses, revenue, possibly immigration, social security
      - Govt is conferring some benefit on individual
    - Some say at a minimum, it would involve a suit between fed govt and private party, but that hasn't actually been the law
- Why could public rights adjudication → be handled by non A3 courts?
  - Building on fed sov imm: govt gets to decide how it'll be sued
  - These are administrative areas where political branches have ton of control, don't need to use the federal judiciary
- Why not?
  - agencies might need to be checked sometimes
  - Immigration → leaving individual liberty, detention issues to non-Art III courts
- White dissent:
  - this is ironic because this is a state law claim re: bankruptcy contract issue; not core to A3 anyways, why are we concerned

Thomas v. Union Carbide Agricultural Products Co.

- Insecticide act: allowed companies to use other company's data when getting EPA approval for pesticides, etc but had to compensate → compensation disputes went to mandatory arbitration → public rights ish enough
- **Balancing** - not going to kill the A3 judiciary if they don't get to adjudicate disputes about compensation under insecticide act

FTC v Schor:

- Suits re: commodity brokers services → adjudicated by independent fed agency
- Two private parties fighting over essentially a contract claim → seems like private rights but NO
- It was narrow enough and the parties consented to it
- **Balancing:** If you allow for a non-art 3 court to handle these fights involving commodities trading, not going to kill the art 3 judiciary

Granfinanciera:

- Fraudulent transfer suit in bankruptcy context:
  - If you owe a lot of money to a lot of people, and you pick one and you give them your money, the other people don't get a piece, favoring one creditor over all of the others; not fair
- This is like private party v private party, similar to common law claim, private rights → court said adjudicating these disputes in non-art 3 court is invalid
- 7A:
  - Not just worried about art 3 - talking about 7A right to jury trial - Justice Brennan says there is a right to jury trial to adjudicate these common law claims
- Scalia Concurrence:
  - hates balancing test - we need rules, esp for const issues
- AFTER Granfinanciera: **Bankruptcy no, everywhere else sure:**
  - This seemed to be the law for long time

SEC v Jarkesy:

- SEC enforcement action seeking civil penalties (like a fine)
  - that implicates 7A bc of AIC requirement
  - Court says securities fraud is **like a common law claim** → **must be heard by a jury**
- This is the govt coming in and suing; why is this not a public right?
  - they don't really say, just say this isn't a public right
- What is the problem with this?
  - Harder, more expensive for SEC to enforce the provisions

**B. Military Tribunals/Federal Habeas Review of Executive Detention**

- *Argue that the Suspension Clause applies using the Boumediene factors, so the jx-stripping statute is unconstitutional bc it violates the Suspension Clause → the Court can hear your case!*
- *And can also argue that it is unconstitutional jx-stripping statute under Art III (arguments from beginning of course)*
- *Note: if exec transfers detainees out of US custody after suit begins, moot!*

**Test: Boumediene Factors:**

1. U.S. citizenship?
2. Status contested?
3. Adequacy of the process to determine status?
4. Site of apprehension (outside of US)?
5. Site of detention (outside US and US govt control)?
6. Practical obstacles

|                                                                                                                                                                                                                            | <b>Germany - Eisentrager</b>                                                                                                                                                                   | <b>Guant Bay Boumediene</b>                                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Citizenship of the detainee - are they US citizen?</b>                                                                                                                                                                  | Not US citizens                                                                                                                                                                                | Not US citizens                                                                                                                                               |
| <b>Status of the detainee: contested?</b>                                                                                                                                                                                  | NO, not contested: Admitted they were unlawful enemy combatants (At least how Kennedy interprets Eisentrager) (unlawful = doing war things in illegal/unlawful ways, not wearing uniform, etc) | Yes, contested                                                                                                                                                |
| <b>the adequacy of the process</b> through which the determination of person's status was made (i.e., by which determined to be unlawful enemy combatant)<br><br><i>Think: is there a lawyer? Can they share evidence?</i> | Kennedy describes the Eisentrager process as rigorous <b>adversarial</b> process with <b>lawyers, real trial</b> (Seems like BS to Grove)                                                      | CSRTs: limited, no lawyer just a personal representative, govt evidence gets a presumption of validity/presumed valid, not much access to classified evidence |
| <b>Site of apprehension</b>                                                                                                                                                                                                | Outside US                                                                                                                                                                                     | Outside US                                                                                                                                                    |
| <b>Site of detention;</b> really concerned here about the <b>amount of control</b> in that site of detention<br><br><i>Think: is there an agreement? Time limits? De facto sov?</i>                                        | Outside US - according to Kennedy, US shared power with allies;<br>Less control                                                                                                                | Outside US - Guantanamo Bay: <b>de facto sov</b> → lots of control; any indication that this control will end anytime soon? No, no time limit                 |
| <b>Practical obstacles</b><br><br><i>Zoom! In conflict zone? Distracting officers from duties?</i>                                                                                                                         | Lots of obstacles, lack of transportation, calling military officers to testify, and US in control of huge area, impossible                                                                    | No problem because of the level of control US has, won't be too much of a problem                                                                             |

Suspension Clause:

- “the privilege of the writ of habeas corpus shall not be suspended unless when in cases of rebellion or invasion the public safety may require it”
- Does this mean there is a right to habeas in the const?
  - Text says it is a privilege not a right
  - IF There is this privilege out there, these are the times it can be suspended
- Argue that the text assumes any privilege of habeas extends *only* to **US territory**:
  - Rebellions and invasions happen at home
  - But this could just be a limit on when it can be *suspended*, doesn't actually say anything at all about where it applies or to whom

Eisentrager:

- Germans feeding info to Japanese folks in China
- Tried and convicted of war crimes by US military commission in China
- They were then moved to Germany to serve their sentences, US govt partially at least controlling that territory
- They filed habeas petitions
- Court: NO jurisdiction for habeas claims
- Why not?
  - Enemy combatants - dangerous to give them have access to US courts
  - The people would need to be transported to America, and it would set a precedent that enemies would need to be transported to America, and they might have witnesses to bring, huge burden to military
  - They were Germans tried in China and then moved to Germany; never been in the US at all

Black Dissent:

- Allows the exec to avoid const limits and separation of powers check of judiciary by just keeping everything out of US territory
- We should be able to review when the US govt detains people, there should be some kind of review, even if narrow
- Dissent saying that *the const applies where US is operating*, this should be symbol to the world, everyone should be protected by the US const where the US is operating

Boumediene:

- Petitioners are enemy combatants, arrested in connection to war on terror, held at Guantanamo Bay
- **Court: they can get habeas review (notwithstanding Eisentrager)**
- 2005: Detainee Treatment Act: set up Combatant Status Review Tribunals for GB detainees to challenge their classification as unlawful alien enemy combatants.
  - Court: These procedures are NOT an adequate and effective substitute for habeas



- 2006: Military Commissions Act: Section 7(a) of the MCA prevented detainees classified as unlawful alien enemy combatants from challenging the conditions of their confinement and detentions through a writ of habeas corpus.
  - Court: This is an unconstitutional suspension of the writ
  - This was a jx stripping statute by design; passed after *Hamdan*

Q: To what extent does hab /the const apply?

- Strong reasons to say that it did apply
  - **De jure v de facto sov**
    - De jure - legal authority - Cuba is the de jure sov of GB
    - De facto - just like practical sov - US still has pretty much complete control
  - But Eisentrager said - if you are not US citizen, not in the US, have never been in the US, no hab
  - SCT said there is jx notwithstanding Eisentrager
- Did it seem consistent with Eisentrager, or overruling it?
  - Stevens hated Eisentrager - why? What would it mean to say there's no hab jx?
    - Political branches could just start sending people to be detained in other places and govern without legal constraint